



**Central Administrative Tribunal
Principal Bench,
New Delhi**

**OA No.4107/2023
with
O.A. No.474/2025**

Orders reserved on : 26.02.2026

Orders pronounced on : 16.04.2026

**Hon'ble Mr. Justice Ranjit More, Chairman
Hon'ble Mr. Rajinder Kashyap, Member (A)**

OA No.4107/2023

1. Delhi Andaman & Nicobar Islands Civil Service Officers Association, through its General Secretary, Rakesh Singhal, Aged About 36 Years, S/o Sh. Dwarika Prasad Singhal, R/o Flat 502, Tower-24, CWG Village, Near Akshardham, Delhi-110092
2. Ajay Kumar, DANICS, (2004 batch) Aged About 46 Years, S/o. Deonath Prasad, R/o. Flat No:47, Delhi Govt. Officer Flat, GK-1, New Delhi -110048
3. Pranjal J Hazarika, DANICS, (2006 batch) Aged About 47 Years, S/o Nirmal C Hazarika, R/o. A-102, Pragiyotihpur Apartments, Sec-10, Dwarka, New Delhi - 110075
4. Rajanish Kuamr Singh, DANICS, (2007 batch) Aged About 45 Years, S/o. Sarju Singh, R/o. Flat No: 22, Delhi Govt. Offc. Flats GK-1, New Delhi -110048.



5. Asha Chaudhary Malhotra, DANICS, (2009 batch)
Aged About 42 Years,
D/o. Krishan Kumar,
R/o. D-44/4, East of Kailash,
New Delhi-110065
6. Vikash Ahlawat, DANICS, (2009 batch)
Aged about 43 years,
S/o. A.S. Ahlawat, R/o. G-01, Tower -1,
Malibu town, Sohna Road, Gurugram,
Haryana-122103
7. D. Karthikeyan, DANICS, (2009 batch)
Aged about 42 years,
S/o. A. Devaraj,
R/o. 33/16, Rajpur Road, Civil Lines,
New Delhi - 110054
8. Amit Kumar Pamasi, DANICS, (2009 batch)
Aged about 46 years
S/o. Kishan Lal,
R/o. B-12, D-II, Delhi Govt. officers Qtrs.,
Vasant Kunj, New Delhi - 110070
9. Shingare Ramchandra Mahdev, DANICS,
(2010 batch)
Aged about 38 years,
S/o. Mahadev,
R/o. 33/04, Rajpur Road,
Civil Lines, New Delhi - 110054
10. Shubhankar Ghosh, DANICS, (2010 batch)
Aged about 42 years,
S/o. Raghunath Ghosh,
R/o. 16, Rajpur Road, Civil Lines,
New Delhi 110054
11. Priyanka Kumari, DANICS, (2011 batch)
Aged about 39 years,
W/o. Atmesh Kumare,
R/o. 33/21, Rajpur Road,
Civil Lines, New Delhi -110054



12. Krishan Kumar, DANICS, (2011 batch)
Aged about 40 years,
S/o. 5urja Ram,
R/o. 33/15, Rajpur Road Civil Lines,
New Delhi - 110054
13. Puneet Kumar Patel, DANICS, (2012 batch)
Aged about 40 years,
S/o. C.L. Patel,
R/o. 38-A, Pocket-S, Mayur vihar Ph-2,
New Delhi – 110091
14. Rajiv Ranjan, DANICS, (2013 batch)
Aged about 40 years,
S/o. Bhesh Narayan Pandey,
R/o. A1, Type IV, Delhi Admn., Flats,
Model Town, New Delhi - 110009
15. Mukesh Rajora, DANICS, (2013 batch)
Aged about 44 years,
S/o. Puran Chand Rajora,
R/o.C-100, C- Block, Indepuri,
New Delhi - 110012
16. Kapil Choudhary, DANICS, (2013 batch)
Aged about 37 Years,
S/o. Rajendra Kumar Choudhary,
R/o. 6/10, Probyn Road, Timarpur,
New Delhi - 110054
17. Sudhakar, DANICS, (2013 batch)
Aged about 40 years,
S/o. MohanRam,
R/o. H-5, type-5, Delhi Admn., Flats,
Model Town - 1, New Delhi - 110009
18. Rajesh Chaudhary, DANICS (2013 batch),
Aged About 43 years,
S/o Sh. Bharat Singh,
R/o A-154, 4th Floor, Lane No. 2,
A-Block, Vaasnt Kunj Enclave,
Delhi-110070



19. Rahul Saini, DANICS (2014 batch),
Aged About 40 years,
S/o Sh. Baljit Saini,
R/o B-15, D-II, Delhi Govt. Officers Quarters,
Vasant Kunj, Delhi-110070
20. Praveer Kumar Singh, DANICS (2014 batch),
Aged About 35 years,
S/o Sh. Subhash Chandra Singh,
R/o Block-2, DDA HIG Flats, Motia Khan,
Delhi-110055
21. Ranjeet Kumar Singh, DANICS (2014 batch)
Aged About 36 years,
S/o Sh. Vijay Kumar Singh,
R/o 2138, Delhi Administration Flats,
Gulabi Bagh, Delhi-110007
22. Ankur Meshram, DANICS (2014 batch),
Aged About 33 years,
S/o Sh. Prakash Meshram,
R/o 705, Block-2, DDA HIG Flats, Motia Khan,
Delhi-110055
23. Balram Meena, DANICS (2014 batch),
Aged About 31 years,
S/o Sh. Prahlad Meena,
R/o 304, Tower-29, CWG Village,
Akshardham, Delhi-110092
24. Alok Kumar, DANICS (2015 batch),
Aged About 37 years,
S/o Sh. Basudev Chaudhary,
R/o 7002, Tower-24, CWG Village,
Near Akshardham, Delhi-110092
25. Vinod Kumar Yadav, DANICS (2015 batch),
Aged About 36 years,
S/o Sh. Shriram Yadav,
R/o 205, Tower-24, CWG Village,
Akshardham East, Delhi-110092



26. Sanjay Sodhi, DANICS (2015 batch),
Aged About 50 years,
S/o Sh. V.M. Sodhi,
R/o 47A, B-Block, Mayur Vihar, Phase-II,
Delhi-110091
27. Prem Singh Meena, DANICS (2015 batch),
Aged About 33 years,
S/o Sh. R.S. Meena,
R/o 605, Tower-24, CWG Village,
Delhi-110092
28. Dhole Aom Kashinathrao, DANICS (2015 batch),
Aged About 37 years,
S/o Sh. Kashinathrao Adinath Dhole,
R/o 602, Tower-24, CWG Village, Akshardham,
Delhi-110092
29. Rakesh Das, DANICS (2015 batch),
Aged About 43 years,
S/o Sh. N. Das,
R/o 102, Tower-24, CWG Village,
Near Akshardham, Delhi-110092
30. Prateek Raj Yadav, DANICS (2017 batch),
Aged About 37 years,
S/o Sh. Ramniwas Yadav,
R/o 33/23, Rajpur Road, Civil Lines, Delhi
31. Iti Aggarwal, DANICS (2018 batch),
Aged About 36 years,
D/o Sh. Pradeep Kumar Aggarwal,
R/o 702, Block-2, DDA HIG Flats,
Motia Khan, Delhi-110055,
32. Ambika Ratnoo, DANICS (2020 batch),
Aged About 29 years,
D/o Sh. M.S. Ratnoo,
R/o 33/18, Rajpur Road, Civil Lines,
Delhi-110054



33. Aditya Sangotra, DANICS (2020 batch),
Aged About 32 years,
S/o Sh. Mastan Singh,
R/o 2054, DDA Flats, Gulabi Bagh, Delhi
34. M. Bharani, DANICS (2020 batch),
Aged About 32 years,
S/o Sh. V. Muthukumarswamy,
R/o 33/22, Rajpur Road, Civil Lines,
Delhi-110054
35. Janhavi Shekhar, DANICS (2021 batch),
Aged About 29 years,
D/o Sh. Balasaheb Shekhar,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
36. Aarti Agarwal, DANICS (2021 batch),
Aged About 31 years,
S/o Sh. Ajay Kumar Agarwal,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
37. Jagtap Kalyani Rajendra, DANICS (2021 batch),
Aged About 29 years,
D/o Sh. Rajendra Jagtap,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
38. Mahima Tomar, DANICS (2021 batch),
Aged About 28 years,
S/o Sh. Rajeev Kumarv,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
39. Shelly, DANICS (2021 batch),
Aged About 29 years,
D/o Sh. Satish Rathee,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032



40. Aman Singh Lohan, DANICS (2021 batch),
Aged About 31 years,
S/o Sh. Umed Singh Lohan,
R/o Qtr. No. 4, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
41. Ravinder Kumar, DANICS (2021 batch),
Aged About 32 years,
S/o Sh. Madan Lal,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
42. Ruchi Jain, DANICS (2021 batch),
Aged About 26 years,
D/o Sh. Arvind Jain,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
43. Vikash Kumar, DANICS (2021 batch),
Aged About 29 years,
S/o Sh. Ran veer Bag aria,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
44. Anita Yadav, DANICS (2021 batch),
Aged About 33 years,
D/o Sh. Krishan Kumar,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
45. Nitesh Singh Rawat, DANICS (2021 batch),
Aged About 34 years,
S/o Sh. Manwar Singh Rawat,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
46. Atul Soni, DANICS (2021 batch),
Aged About 30 years,
S/o Sh. Anil Kumar Gupta,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032



47. Avinash Singh, DANICS (2022 batch),
Aged About 30 years,
S/o Sh. Shriram Singh,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
48. Pawan Kumar, DANICS (2022 batch),
Aged About 36 years,
S/o Sh. Rameshwar Lal,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
49. Naveen Kumar, DANICS (2022 batch),
Aged About 30 years,
S/o Sh. Attar Singh,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara, Delhi-110032
50. Mukund Vallabh Joshi, DANICS (2022 batch),
Aged About 27 years,
S/o Sh. Parashar Datt Joshi,
R/o Hostel Block, UTCS, Directorate of Training,
Vishwas Nagar, Shahdara,
Delhi-110032

....Applicants

By Advocate(s): Shri Nalin Kohli, learned Senior Advocate assisted by Mr. M.K. Bhardwaj, Ms. Amita Singh Kalkal, Ms. Nimisha Menon, and Ms. Lavanya Bhardwaj for applicants

Versus

1. Union of India
through its Secretary,
Ministry of Home Affairs,
Govt. of India, North Block,
New Delhi.
2. The Joint Secretary (UT)
Ministry of Home Affairs, Govt. of India,
North Block, New Delhi
3. The Secretary, DoP&T,
Govt. of India
North Block, New Delhi.



4. The Secretary,
Department of Expenditure,
Ministry of Finance,
South Block, New Delhi-110001
5. Union Public Service Commission,
through its Secretary,
Dholpur House, Shahjahan Road,
New Delhi.
6. Govt. of NCT of Delhi
through its Chief Secretary,
Delhi Secretariat, I.P. Estate, New Delhi
7. The Principal Secretary (Services),
Govt. of NCT of Delhi,
Delhi Secretariat, I.P. Estate,
New Delhi.
8. The Secretary (Administrative Reforms),
Govt. of NCT of Delhi,
Delhi Secretariat, I.P. Estate,
New Delhi
9. DASS Officers Association
Through General Secretary
Sh. Manoj Kumar Ambasta
S/o Late Sh. C.P. Ambasta
R/o 134, Neelgiri Apartment,
Sector-9, Rohini, Delhi-110085
10. Ravindra Singh,
DASS Grade-I (Adhoc DANICS)
Aged about 57 years
S/o Sh. R.S. Rana
R/o C-6B/103, Janakpuri,
New Delhi.

...Respondents

(Advocate(s): Shri Arun Bhardwaj and Shri Kirtiman Singh, learned Senior Advocates assisted by Ms. Esha Mazumdar, Mr. Setu Niket, Ms. Muskan Sharma and Mr. Manish Kumar for respondent Nos.9 & 10



Mrs. Avneesh Ahlawat, Standing Counsel and Shri Amit Yadav with Shri Nitesh Kumar Singh, Dr. Monika Bhargava, Shri Mohnish Sehrawat for Govt. of NCT of Delhi (R-6, 7 and 8)

Shri R.V. Sinha for UPSC – R-5

Shri S.N. Verma for R-1 and R-2)

OA No.474/2025

1. Dr. Atul Pandey
S/o Shri Satyajeet Pandey
Age 37 years
R/o Tower-29/404, CWG Village,
Behind Akshardham Mandir, Laxminagar, Delhi-110091
2. Abhishek Bhukal
S/o Satpal Bhukal
Age 32 years, Batch: 2018
R/o 28, Himvarsha Apartment,
I.P. Extension, Patparganj, Delhi-110092
3. Himanshu Yadav
S/o Sh. Chhatrapal Yadav
Age 34 years
4. DANICS Batch: 2018
R/o G7 /I, FIRST FLOOR,
VATIKA INDIA NEXT, GURU GRAM
4. Singh Piyush Vijaykaran
S/o Sh. Vijaykaran Singh
Age 33 years, DANICS 2018 Batch
R/o 1504/5/6, Lilly B, Nisarg Greens,
Ambernath East, Thane District,
Maharashtra-421501
5. Aditya Kumar Jha
S/o Dr. Sadanand Jha
Age 34 years, DANICS 2018 Batch
R/o G2, 207, Bharat City, Indraprastha Yojna,
Gaziabad, Uttar Pradesh-201003
6. Gaurav Yadav
S/o Dilawar Singh
Age-37 years, 2014 batch
R/o A-3, Tihar Jail complex, Jail Road, Delhi-110064



7. Vaibhav Rikhari
S/o Sh. Prayag Duty Rikhari
Age 38 years, 2013 Batch
R/o F 1, 206, Southend Apartment,
Charmwood Village, Faridabad, Haryana

8. Shailendra Kumar Singh,
S/o Shiv Lal Sagar,
Age 43 years, 2012 batch,
R/oC-3/5, Yamuna Vihar,
Delhi-110053

9. Prashant Kumar
S/o Sh. Om Prakash Singh
Age- 46 years, Batch- 2010
R/o Flat No.11, G.K.

10. Karanjit Vadodaria
S/o Sh. P.A. Vadodaria
Age 44 years, Batch: 2009
R/o 24/102, CWG Village,
Bh. Akshardham, Patparganj, New Delhi

....Applicants

By Advocate(s): Shri Pragyan Pradip Sharma, Senior Advocate assisted by Ms. Amitra Singh Kalkal, Shri Hardik Jain and Mr. Rustam Chaudhari for Applicant No.1 & Shri Sujay Kantawal with Ms. Amita Singh Kalkal for Applicant no.2 to 10

Versus

1. Union of India
Through its Secretary,
Ministry of Home Affairs,
Govt. of India, North Block,
New Delhi-110001.
2. The Secretary, DoP&T,
Govt. of India
North Block, New Delhi-110001



3. The Secretary,
Department of Expenditure,
Ministry of Finance,
South Block, New Delhi-110001

4. Govt. of NCT of Delhi
Through its Chief Secretary,
Delhi Secretariat, I.P. Estate,
New Delhi-110002

5. DASS/ GNCTDSS Officers Association,
Room No. 126, 1st levels Delhi Secretariat,
Govt. of NCT of Delhi
IP Estate, New Delhi-110002

6. The Union Public Selection Commission (UPSC)
Through Secretary, Dholpur House,
Shahjahan Road, New Delhi-110069.

...Respondents

(By Advocate(s) : Shri Arun Bhardwaj and Shri Kirtiman Singh,
learned Senior Advocates assisted by Ms. Esha Mazumdar, Mr.
Setu Niket, Ms. Muskan Sharma and Mr. Manish Kumar for
respondent No.5

Mrs. Avneesh Ahlawat, Standing Counsel and Shri Amit Yadav
with Shri Nitesh Kumar Singh, Dr. Monika Bhargava, Shri
Mohnish Sehrawat for Govt. of NCT of Delhi for R-4

Shri R.V. Sinha for R-6,

Shri Shri Pradeep Kumar Sharma for R-1 to R-3)



O R D E R

Hon'ble Mr. Rajinder Kashyap, Member (A):

Since the issues involved in the present OAs are identical and arise out of a common set of facts, with the consent of the learned counsel appearing for the parties, both the O.A.s are taken up together and disposed of by way of this common Order. For the sake of convenience and clarity in the narration of facts and adjudication of the issues involved, with the consent of the learned counsel for the parties, **O.A. No.4107/2023** is treated as the lead case and the facts therein are being referred to for the purpose of this common Order.

2. The grievance of the applicants is against the action of the respondents in abolishing nearly 221 posts meant for DANICS & IAS cadre, just to make available the said 221 posts to **Delhi Administrative Subordinate Services** (in short '**DASS**'), in violation of the statutory Recruitment Rules and without following the due procedure as prescribed for the purpose of abolition/creation of Group 'A' posts, which were to be created with the approval of the competent authority, and further in violation of the guidelines prescribed by the Department of Personnel and Training (in short '**DoP&T**'), Government of India vide OM dated 30.09.2022 and Department of Expenditure, Ministry of Finance, Government of India vide OM dated 12.04.2017. The said action of the respondents amounts to taking



away the said posts in Delhi Government without taking into consideration the impact of such decision on **Delhi, Andaman & Nicobar Islands, Lakshadweep, Daman & Diu and Dadra and Nagar Haveli Civil Service** (in short '**DANICS**') itself, which was created way back in the year 1962 by the Union of India to make available suitable officers through the Civil Services Examination conducted by UPSC.

2.1 The applicants are further aggrieved by denial of the principles of natural justice, inasmuch as the respondents have taken the above decision without even affording an opportunity of personal hearing and without addressing the grievances/concerns raised by the applicants vide representations dated 01.06.2023, 12.06.2023 and 15.09.2023, vide impugned letter/decisions dated 07.08.2023 (**Annexure A-1**) and dated 24.08.2023 (**Annexure A-2**).

3. By filing **O.A. No.4107/2023**, the applicants have sought the following reliefs:-

- (i) *To declare the action of the respondents in creating Parallel State Civil Service to DANICS by encadring the Group A posts of DANICS / applicants and IAS into DASS cadre; thereby making DANICS itself redundant in Delhi, as illegal and unconstitutional and direct the respondents not to create Group A Posts for DASS officers outside DANICS.*
- (ii) *To quash and set aside the impugned letters /decisions dated 07.08.2023 and 24.08.2023 and direct the respondents not to abolish / shift Group 'A' posts as mentioned in letters dated 07.08.2023 and 24.08.2023 as these posts are meant for encadrement into DANICS/ applicants & IAS Cadre;*
- (iii) *To declare the action of respondents in creating Group 'A' posts outside DANICS, for promotion of DASS Grade I officials without following the due procedure laid down by*



DoPT vide OM dated 30.09.2022 and without approval of Hon'ble President of India as illegal.

- (iv) *To direct the respondents to take decision with regard to creation of Group 'A' posts /encadrement of the same in appropriate service as per the recommendations of Dr. M.M. Kutty Committee constituted by MHA with the approval of Hon'ble Home Minister, Govt. of India and grant consequential benefits to applicants.*
- (v) *To allow the OA with cost.*
- (vi) *To pass any such other order as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case."*

3.1 By filing **O.A. No.474/2025** under Section 19 of the Administrative Tribunals Act, 1985, the applicants have sought the following reliefs:

- "(i) *To quash and set aside the impugned GNCTDSS (Second Amendment) Rules, 2024 dated 24.12.2024 as illegal and unconstitutional being violative of article-14, 16 & 21 of Constitution of India;*
- (ii) *To declare the action of the respondents in creating Parallel State Civil Service to DANICS in Delhi by encadring IAS and DANICS posts/posts recognized for DANICS in DASS cadre; as illegal and unconstitutional and direct the respondents not to create Group A Posts for DASS officers outside DANICS;*
- (iii) *direct the respondents not to abolish / shift Group 'A' posts meant for encadrement into DANICS/ applicants and IAS Cadre;*
- (iv) *To declare the action of respondents in notifying the impugned GNCTDSS (Second Amendment) Rules, 2024 without following the due procedure laid down by DoPT vide OMs dated 13.10.2015 and 30.09.2022 and without approval of Hon'ble President of India as illegal.*
- (v) *To direct the respondents to take decision with regard to creation of Group 'A' posts/ encadrement of the same in appropriate service as per the recommendations of Dr. M.M. Kutty Committee constituted by MHA with the approval of Hon'ble Home Minister, Govt. of India and grant consequential benefits to applicants.*
- (vi) *To allow the OA with cost.*
- (vii) *To pass any such other order as this Hon'ble Tribunal may deem fit and proper in the facts and circumstances of the case."*



FACTS OF THE CASE (O.A. No. 4107/2023)

4. Brief facts of the case, as stated by the applicants, are that the applicants belong to Delhi, Andaman & Nicobar Islands, Lakshadweep, Daman & Diu and Dadra & Nagar Haveli Civil Service (hereinafter referred to as 'DANICS') and they were recruited to DANICS through Civil Services Examinations conducted by UPSC during 2000 to 2022. The service conditions of the applicants, being DANICS officers, are governed by DANICS Rules, 2003 as amended from time to time.

4.1 The DANICS was initially constituted through the Delhi Andaman & Nicobar Islands Civil Service Rules, 1962 and the said service was subsequently extended to the Union Territory of Lakshadweep in 1995 and thereafter to UTs of Daman & Diu and Dadra & Nagar Haveli in 1996. With expansion in the activities of the Government and decentralization of different administrative wings/units, the requirement of civil servants to carry out various tasks increased manifold over time, and the manpower requirement also increased. Presently, the Ministry of Home Affairs, Government of India is considering inclusion of UT of Ladakh also in DANICS.

4.2 After the initial constitution of the said service, the sanctioned strength increased over a period of time and the respondents created two more grades, i.e., Junior Administrative



Grade-II & Junior Administrative Grade-I, and the said rules were amended and are now known as Delhi, Andaman and Nicobar Islands, Lakshadweep, Daman & Diu and Dadra & Nagar Haveli Civil Service Rules, 2003 (in short 'the Rules of 2003'). As per the said Rules of 2003, the appointment(s) to DANICS is/are made by way of direct recruitment as well as promotion in the ratio of 50:50, and the Service (DANICS) means the Civil Service constituted under Rule 3 of the Rules of 2003.

4.3 It is stated that in terms of Rule 7(2) of the Rules of 2003, 50% of the posts shall be filled by direct recruitment and the remaining 50% by promotion amongst officers holding the posts mentioned in Schedule-II, including officials of DASS Grade-I with 3 years regular service.

4.4 The said ratio was prescribed keeping in view the object of creation of the said service, to ensure availability of officers to administer the Civil Administration of Union Territories, namely Delhi, Andaman & Nicobar, Lakshadweep, Daman & Diu and Dadra & Nagar Haveli. The DANICS officers are liable to be transferred from one UT to another. The cadre strength of DANICS was determined in 2009. However, no cadre review has been conducted for the last 11 years despite repeated requests, and the DANICS Officers Association had to approach this Tribunal.



4.5 It is also stated that as per the DANICS Rules that 50% of entry level posts are filled by promotion from DASS officials. The DASS cadre consists of four strata of posts, namely, Junior Assistant (LDC/DASS Grade-IV), Senior Assistant (UDC/DASS Grade-III), Assistant Section Officer (DASS Grade-II) and Section Officer (DASS Grade-I). The DASS Grade-I officers are posted in different Departments of GNCTD as Tehsildar, Sub-Registrar, Superintendent, AGSTO etc. and they are required to report to the next higher officer in their respective office of posting, as is evident from DASS Recruitment Rules, 2022 (**Annexure A-3**) that the DASS Grade-I officer(s) on completion of 3 years of regular service became(s) eligible for induction to DANICS, which is a higher service for them and they are governed under different set of Recruitment Rules notified from time to time.

4.6 Before 2015, the pay scale of Grade-I DASS officer(s) was lower than (Level 7 in the Pay Matrix) the Entry Grade DANICS officer(s) (Level 8 in the Pay Matrix) and the promotion of Grade-I DASS officers(s) into Entry Grade DANICS was done strictly as per applicable rules on year to year basis by following DoP&T's instructions regarding holding yearwise DPC by Ministry of Home Affairs, Govt. of India. In 2015, MHA approved the proposal of GNCTD for upgradation of pay scales of Grade-I DASS officers from Level 7 into Level 8 in the Pay matrix. The



applicants had not objected to said pay upgradation as the same does not involve inclusion of any higher/Group 'A' posts in DASS cadre.

4.7 Even after the pay upgradation, the Grade I DASS officers continue to hold the same posts such as Tehsildar, Superintendent etc., and MHA granted approval of Pay Upgradation of Grade I DASS officers subject to the condition that they would not be entitled for any seniority over direct recruit Entry Grade DANICS on their promotion /induction into DANICS. Meaning thereby, it was made clear that the pay upgradation as granted to Grade I DASS officers is only personal to DASS Service and will not be made basis to seek any benefit over and above the officer of DANICS being part of higher Service. However, in gross violation of conditional approval granted by MHA, Grade I DASS officers started refusing promotion into Entry Grade of DANICS and started demanding back dated seniority (weight-age for the service rendered in DASS on their promotion into Entry Grade of DANICS) on their promotion into Entry Grade of DANICS. However, DoP&T rejected the said demand of Grade I DASS offices for their back dated seniority on their promotion into Entry Grade of DANICS in the year 20t6.

4.8 Subsequently, Grade-I DASS officers started making request for delinking DASS from DANICS by creation of Group A posts in DASS cadre itself. The said demand was approved by Delhi



Cabinet vide approval dated 31.12.2015. However, Ministry of Home Affairs vide letter dated 27.04.2016 rejected the above Delhi Cabinet approval dated 31.12.2015 on the ground that *"In terms of the Allocation of Business Rules, Transaction of Business Rules and extant DANICS Rules, the power to make any amendment in Recruitment Rules of DANICS vested with the Ministry of Home Affairs. Any amendment in the Recruitment Rules of DANICS can be made after inter-ministerial consultation and statutory consultation with UPSC; followed by Presidential approval. The Cabinet Decision No.2283 affects the provisions made in the Recruitment Rules of DANICS, whereas the Delhi Cabinet has no jurisdiction to make any alternation in DANICS Rules. As such, the Cabinet Decision No.2283 dated 31.12.2015, being ultra vires, is not sustainable."*

4.9 Thereafter, the Hon'ble Lt. Governor of Delhi constituted a three Member Committee headed by Sh.S.N. Sahai for making recommendations for restructuring the DASS cadre in the year 2017. The said Committee submitted the report and simply re-packaged the Cabinet proposal dated 31.12.2015 and recommended for creation of Group A in DASS cadre. Since, the said recommendations had inter-services implications and adversely affecting the DANICS service, Hon'ble Lt. Governor of Delhi directed the Services Department of GNCTD to forward the said Committee recommendations related to creation of Group A



posts in DASS cadre to MHA for further examination due to its inter-service implications and its adverse impact on DANICS service itself.

4.10 The MHA vide letter dated 18th September, 2018 highlighted the constitutional, legal and administrative issues involved in creation/encadrement of Group A posts in DASS cadre, a subordinate service and asked certain clarifications from GNCTD. One of major issue highlighted by MHA vide letter dated 18.09.2018 is:-

"The Constitution of India mandates creation of one State Civil Service in each State through the State public Service Commission. Since the Union Territory of Delhi, Andaman and Nicobar, Daman & Diu and Dadra, & Nagar Haveli are not 'States', the Government of India, in exercising of powers conferred under Article 309 and Article 377(3) of the Constitution of India, promulgated allocation of Business Rules, 1961 and created State Civil Service (DANICS) for Union Territories (UTs). Acceptance of Committee's recommendations will virtually create a parallel State Civil Service and delink it from DANICS, which has been created by Government of India for Delhi and other UTs".

4.11 However, the GNCTD without examining the constitutional, legal and administrative issues involved in creation /encadrement of Group A posts in DASS cadre, a subordinate service, as highlighted by MHA vide letter dated 18.09.2018, sent a reply vide letter dated 11.06.2019.

4.12 Since, the GNCTD failed to address the concerns/issues raised by MHA regarding constitutional, legal and administrative issues involved in creation/encadrement of Group 'A' posts in DASS cadre, a subordinate service, MHA vide order dated



73.07.2020 constituted a two Member Committee headed by Dr. M.M. Kutty, IAS with the approval of Hon'ble Home Minister, Govt. of India to examine the service related issues of IAS, DANICS and DASS and to recommend measures to remove stagnation in DANICS and DASS cadres in a holistic manner. The said Committee constituted by MHA with the approval of Hon'ble Home Minister, Govt. of India submitted the report on 11th September, 2020. The said Committee while recommending the measures for removing stagnation in DASS cadre, rejected the demand for creation/encadrement of Group 'A' posts in DASS cadre, a subordinate service as it involves creation of a parallel State Civil Service for Delhi. The observation of the said Committee on the demand for creation/encadrement of Group 'A' posts in DASS cadre, a subordinate service is as follows:-

*"With regard to the suggestion of granting of Grade Pays of Rs.6,600/- (Pay Matrix Level-11) and Rs. 7,600/- (Pay Matrix Level-12) (in situ) the Committee is of the view that such measures have the potential of creating a parallel service virtually delinking it from DANICS creating not only administrative difficulties but also adversely affecting vertical relativity and link between DASS and DANICS. It is relevant to mention here that MHA has brought to the notice of the Committee that 44 officers from feeder cadres inducted to DANICS including DASS were DANICS vide Notification dated 28.12.2018, but 36 of them refused to join DANICS. In view of above, the Committee is of the view that **proper cadre restructuring/ review management may be done rather than granting such higher scales.**"*

4.13 On the aforesaid recommendations of the said Committee, the MHA invited the suggestions and comments from all UTs in November, 2021. However, GNCTD has not sent its comments on



the recommendations of the said Committee till date. Although, a meeting was held at MHA along with Delhi Government officers and DASS Association members, however no final decision was taken but at the same time, the following proposals were considered for examination and further action:-

- "(i) At the time of induction of Grade I DASS officers into Entry Grade of DANICS, benefit of past service rendered by these officers in DASS Grade I may be considered in consultation with department concerned and subject to the approval of the competent authority.*
- (ii) The GNCTD will consider to earmark approx. 500 posts with suitable designation in the Grade Pay of Rs.6600/- (Level 11) within DASS cadre for the officers who are already drawing the Grade Pay of Rs.6600/- through MACP along with suitable changes in the number of Grade II, Grade III & Grade IV posts. It has been informed by the GNCTD that approx. 300 posts are available in GNCTD and remaining 200 posts will be adjusted through matching savings or by other appropriate method and as per existing instructions.*
- (iii) The request for creation of in-situ posts at the level of Grade Pay of Rs.7600 (Pay Level-12) and taking option/willingness for their induction to DANICS will be considered separately at the later stage."*

4.14 It is stated that as the DANICS Association was not a part of the said meeting held on 24.05.2023, therefore, DANICS officers Association objected the said one sided decision/proposals which was not only contrary to MHA's own decisions taken earlier, also have adverse effects on DANICS Service itself, and therefore, the DANICS Association submitted a comprehensive representation dated 01.06.2023 to Chief Secretary, Delhi (**Annexure A-4**) against the above proposals dated 24.05.2023. However, the grievances raised by the



applicants vide their representation dated 01.06.2023 has not been examined/addressed till date.

4.15 It is also stated that since Govt. of NCT of Delhi failed to examine the representation submitted by DANICS Association on 01.06.2023 and address their grievances, the DANICS Officers Association submitted a comprehensive representation to MHA, MoF, DoP&T and UPSC dated 12.06.2023 (**Annexure A-5**) against the above proposals dated 24.05.2023. The MHA vide letter dated 13.06.2023 directed the GNCTD (**Annexure A-6**) to examine the DANICS Association's representation dated 01.06.2023 and 12.06.2023 before a view is taken on the proposals dated 24.05.2023. But the GNCTD without examining the DANICS Association's (applicants) representations dated 01.06.2023, 12.06.2023 and in violation of MHA letter dated 13.06.2023, sent a proposal to MHA for abolition of 221 DANICS posts/DANICS equivalent posts for creation /encadrement of 221 Group 'A' posts in DASS vide letter dated 07.08.2023 (**Annexure A-1**). Thereafter, the DANICS Association (applicants) sent an e-mail dated 12.08.2023 to MHA informing that GNCTD is proposing to abolish DANICS posts/DANICS equivalent posts for creation of Group 'A' posts in DASS cadre without following the guidelines prescribed by DoP&T, Govt. of India vide OM dated 30.09.2022 and Department of Expenditure, Ministry of Finance, Govt. of India vide OM dated



12.04.2017. The MHA without considering/addressing the concerns/grievances raised by DANICS Association (applicants) vide representations dated 12.06.2023 and mail dated 12.08.2023 and without examining its adverse impact on DANICS service and the promotional aspects of DANICS officers, had conveyed the "No Objection" (NoC) (**Annexure A-2**) for abolition of DANICS posts / DANICS equivalent posts in Delhi for creation of Group 'A' posts in DASS cadre. The DANICS Association (applicants) submitted a comprehensive representation dated 15.09.2023 (**Annexure A-7**) to Ministry of Home Affairs, Ministry of Finance, DoP&T and UPSC highlighting the adverse impact of creation of Group 'A' posts in DASS cadre on the promotional aspects of DANICS officers in DANICS Service and their induction in the IAS. It is also stated that although there is an acute stagnation for DANICS Officers inasmuch as, they are inducted to IAS after completion of 25 to 28 years, whereas the minimum prescribed service for induction to IAS is 8 years, however, there is no stagnation in DASS Grade I and the same can be verified from the record as well as the orders passed by the MHA itself. The repeated attempts of MHA to fill up the vacancies meant for DASS Grade-I to Entry Grade of DANICS have failed inasmuch as, the DASS Grade-I have declined to accept promotion to DANICS, which is a higher service and contained sufficient opportunities for DASS Grade-I to accelerate further. All the posts sought to be created now in



DASS as per the latter dated 07.08.2023 and No Objection Certificate (NOC) dated 24.08.2023 given by MHA, are already available for DASS Grade-I on their promotion/induction to DANICS. However, the DASS Grade-I officers have chosen not to avail the aforesaid promotional opportunities for different reasons and have tried to create artificial stagnation and the same has even been acknowledged by the MHA itself. The alleged stagnation as projected by DASS Grade-I has effectively blocked the DANICS cadre review and promotion of Grade I DASS into DANICS since 2013.

4.16 It is further stated that on the one hand, Grade I DASS officers alleges stagnation but on the other hand, more than 720 promotional quota vacancies in Entry Grade DANICS are lying vacant as Grade I DASS officers are not interested in getting promotion into DANICS, as the same involves all India Transfer liability among various UTs. Infact, the DASS officials tried to create artificial stagnation by not accepting their promotions for years together just to pressurize the competent authority to create separate Group 'A' posts, outside DANICS for their promotion in DASS itself. The said attempt of DASS Officials was nothing but a ploy to avoid outlying postings like Andaman & Nicobar Islands, Lakshadweep etc. and to enjoy lucrative posting not only within Delhi but in the same Department where they are continuing as DASS Grade-II, DASS Grade-I for years together, which cannot



be said to be in the interest of good, clean and transparent Administration. Be that as it may, the respondents i.e. Ministry of Home Affairs considered the said representations of DASS Officials and constituted a Committee known as Dr. M. M. Kutty Committee. The said Committee submitted a report on 11.09.2020, which examined the issues of stagnation in DANICS as well as DASS Cadre in a holistic manner. The said Committee Report explicitly rejected the Sahai Committee recommendations on above three proposals stating as under:

"Induction in the Grade Pay of Rs.5400/- (Pay Matrix Level 10) or Rs.6600/- (Pay Matrix Level 11) may also disturb the vertical relativity with DANICS and Horizontal relativity with other feeder cadres and hence not recommended. The Committee is of the view that the way to address this problem is by improving promotional prospects."

The Committee in respect of DANICS cadre review also noted as under:-

"The proposed cadre restructuring (DANICS Cadre Review) will reduce the time taken for induction of Grade-I DASS and other feeder Cadre officer to DANICS substantially. Under such circumstances, even without counting the past service rendered in feeder cadres, timely induction to DANICS is expected to take place."

4.17 It is also stated that the report of Kutty Committee categorically rejected the demand of DASS officials for shifting the posts meant to be encadred into DANICS and giving the benefit of past service rendered on their promotion into DANICS due to its adverse impact on DANICS as well as other feeder cadres of DANICS. The said report of Kutty Committee also



recommended for urgent DANICS cadre review for encadrement of 442 ex-cadre posts equivalent to DANICS into DANICS service as the same would add additional 221 posts in the promotional quota and total posts available in the promotional quota in Entry Grade DANICS would become 359 (135 plus 224) for 789 directly recruited Grade II DASS officers and address the so called stagnation in DASS cadre.

4.18 It is further stated that since the main issue of Grade I DASS officers is not about getting timely promotion but they do not want to go out of Delhi, hence, the DASS officers are blocking the process filling up of promotional of quota vacancies of Entry Grade DANICS as well as DANICS cadre review since 2013, as they would nullify their claim of so called artificial stagnation in DASS cadre. Further, the said report of Kutty Committee was put up before the competent authority for necessary action and the competent authority was pleased to acknowledge the said report and accordingly issued directions to hold DPC to fill up the 50% promotion quota amongst the DASS Grade-I. It is clear from the letter dated 03.04.2023 (**Annexure A-8**) issued by Respondent No. 1 & 2 that near about 150 vacancies Entry Grade DANICS were meant for DASS Grade-I to be filled up by conducting year-wise DPC. Once the aforesaid DPC was convened, officials to occupy most of the DANICS posts in Delhi would have exposed and in that eventuality, the Respondent No.1 & 2 had no occasion



to issue the impugned letter having the drastic adverse effect on DANICS Service. It is also stated that as the needful was not done, therefore, the respondent no.1 & 2 issued various reminders to ensure that near about 150 vacancies of entry grade DANICS are filled up by promoting eligible DASS Grade-I. In spite of issuance of notice by this Tribunal in an OA filed by DANICS Association for holding said DPC to maintain balance amongst direct recruits and promotee DANICS, the DPCs were not held for years together. Once the DASS Grade-I gets promotion as Entry Grade DANICS, they are treated like direct recruit DANICS for all intent and purposes, meaning thereby, they acquire eligibility to get promotion to Selection Grade, JAG-II & JAG-I in DANICS service. Meaning thereby, as per the service conditions existing as on date, the DASS Officials are eligible to get promotion to the same post which are sought to be abolished with sole intention that the said posts are not encadred into DANICS. In fact, the same Group 'A' posts as mentioned in the impugned letter of GNCTD dated 07.08.2023 are also promotional post for DASS Grade I Officials, the only difference as on date is that the same can be claimed by DASS Officials only on acceptance of promotion as Entry Grade DANICS. Meaning thereby, the DASS Officials want tailor made rules for them just to ensure that they not only get Group 'A' posts, which are meant for DANICS and IAS, but also continue in Delhi only. The direct recruit DANICS as well as IAS, who are posted against the above referred Group



'A' posts, are liable to be transferred to outlying segment which the DASS Officials want to avoid by all possible ways even at the cost of DANICS Service itself.

4.19 It is also stated that an identical proposal was first recommended on 31.12.2015, by Delhi Cabinet, the MHA clarified vide its letter dated 27.04.2016 that such cadre changes cannot be possible as "*DASS officers cannot be posted against posts identified for DANICS*" amongst other issues. It is also stated that the posts in Delhi such as SDM, Deputy Director, Deputy Secretary, Assistant Commissioner, VATO [Value Added Tax Officer], Vigilance Officer, Deputy Commissioner, Administrative Officer, etc. are identified for DANICS Cadre and shall have to be mandatorily encadred into DANICS cadre as per extant rules. Thus, a post identified for encadrement into State Civil Service that is DANICS for Delhi cannot be encadred into the Subordinate Service such as DASS. Appointment to DASS is made at the level of junior Assistant / LDC and ASO/Assistant Section Officer. Thereafter, promotions are allowed to the level of UDC/DASS Grade-III, DASS Grade-II and DASS Grade-I and thereafter, induction to DANICS. The said arrangement has been made keeping in view the administrative exigency inasmuch as, the entry/selection/JAG-II posts are required to be meant by young officers for timely implementation of Govt. policies notified from time to time. Even otherwise also, the services i.e.



DASS/DANICS/IAS are not meant to create employment or promotions, but the same are created to implement the policies of the Govt. Appointment/promotion etc. are incidental and, therefore, the individual grievances related to promotion etc. cannot be permitted to prevail over the interest of public at large. The impugned decision as taken by respondents would not only cause chaos within aforesaid three services but may also affect the functioning of the Delhi Govt. itself inasmuch as, the DASS Grade-II would be occupying Group 'A' posts without there being any acumen to hold such important posts i.e. Dy. Commissioner, GSTO, Assistant Commissioner (Excise) etc. The said posts are required to be occupied by the young officers appointed through DANICS/IAS in proportionate manner. Once the impugned decision is implemented, the strength of Group 'A' DASS Officials would be more than combined strength of DANICS & IAS cadre in Delhi and the same cannot be the intent of competent authority, which created the DANICS and IAS in view of various factors. Hence, this OA has been filed by the applicants seeking the reliefs as quoted above.

5. Pursuant to notice issued to the respondents, the respondents have filed replies as well as written submissions with the leave of this Tribunal.



CONTENTIONS OF THE APPLICANTS

6. Shri Nalin Kohli and Shri Pragyan Pradip Sharma, learned Senior Counsel appearing for the applicants argued that historically in India and also the Indian Constitution envisages three kinds services in the Civil Services hierarchy, namely:

- a) Imperial Civil Service - **All India Service** i.e., IAS - All India Services created/framed under the Article 312 of the constitution of India e.g. IAS, IPS, IFoS. IAS is filled partly by Direct Recruitment (2/3) and partly by promotion from State Civil Services (1/3) which consist of Group 'A' posts.
- b) Provincial Civil Service (PCS) - State Public Services framed under Article 309 of the Constitution read with Entry 41 in State List. It consists of State Civil Services (Group A) and State Subordinate Civil Services (Group Band C).
- c) Central Services (Central Civil Service/General Central Service) created/framed under Article 309 of the Constitution read with Entry 70 in Union list e.g. Central Group 'A' Services, DANICS, DASS etc., filled partly by Direct Recruitment (50 %) and partly by promotion from Subordinate Civil Services (50 %).

The above pattern is uniformly being followed throughout the Country.

- d) Delhi being an UT with legislature, DANICS is the State Civil Service consisting of Group A & B Cadre and DASS is State Subordinate Civil Service. **(Nomenclature of the service as per the DANICS Rules, 2003 is Delhi, Andaman and Nicobar Islands, Lakshadweep, Daman and Diu, and Dadra and**



Nagar Haveli (Civil) Services and DASS Rules, 2022 is Government of National Capital Territory of Delhi Subordinate Service itself denotes the same). DANICS officers being the State Civil Service for Delhi are promoted into IAS and DASS officers being State Subordinate Civil Service for Delhi are promoted into DANICS.

6.1 Learned Senior counsel further submitted that the entire structure of the services in GNCTD and all over India has duly been noted in the judgement of the Supreme Court in the case of ***Bir Singh Vs DJB & Ors.***, reported in (2018)10 SCC 312. It is also contended that CCS (CCA) Rules, 1965 enacted under proviso to Article 309 are the governing statutory rules to Central Civil Services. All the Delhi Government officials including DASS are governed by CCS (CCA) Rules, 1965. Subordinate services in the NCT of Delhi are, therefore, clearly Central Civil Services. Further, it is contended that for each of the above services in the civil service hierarchy, posts are identified based on the functions and responsibilities assigned to each Service. Posts to be encadred into a service; are identified for a service based on the nature of functions and responsibilities attached to them. DoP&T OM dated 30.09.2022.

6.2 Learned senior counsel submitted that the Aitchison Public Service Commission Report of 1886 is the basis of Civil Services Hierarchy in India. It specifically lays down the line



of division between the State Civil Services (Provincial Civil Service) and the State Subordinate Civil service based on the functions and responsibilities attached to the posts/service as below:

- The posts of **Tehsildar and equivalent** -State Subordinate Civil Service. i.e. Assistant Sales Tax officer, Superintendent etc.,
- **Deputy Collector / Assistant Commissioner or equivalent**- State Civil Service i.e. Sales Tax officer, Deputy Secretary, Deputy Director etc.,
- The above line of division is being maintained all over India Since 1890.
- **Note** - The Highest level of posts based on its functions and responsibilities included in State Subordinate Civil Service in the entire Country is Tehsildar / **Assistant Sales Tax Officer** / Section officer/Superintendent or equivalent i.e. Grade I DASS.

The State Civil Service starts from the posts of SDM/ Deputy Collector/ **Sales Tax Officer/ Deputy Secretary/ Deputy Director** or equivalent i.e.. DANICS. The State Civil Service officers holding the post of Deputy Collector or equivalent for eight years are eligible for promotion into IAS i.e.. All India Service.

Hence, Any officer who is holding the posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc., which are equivalent to Deputy Collector in Delhi for eight years; can legally claim right to be promoted into IAS.

6.3 It is also contended that on the above analogy and based on the functions and responsibilities attached to the posts - the



post of **Assistant Sales Tax Officer** (ASTO) is identified for DASS cadre i.e. State Subordinate Civil Service and post of **Sales Tax Officer** (STO) is identified for DANICS i.e. State Civil Service for Delhi. The MHA letter dated 21.04.2016 categorically states "**Posts identified for DANICS**" means all the Deputy Collector equivalent posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary and Deputy Director are already identified for DANICS and included in the DANICS Schedule. Posts means post only, not the number as the same keeps changing accordingly to workload and administrative requirements. Thus, it makes abundantly clear that in addition to the 81 posts included in the DANICS Schedule, the 74 posts are earmarked specifically for DANICS cadre only. Therefore, the said posts cannot be diverted to the subordinate services. Posts once identified for a particular service shall remain with the same service until the post is decadred during the subsequent cadre review. For e.g. there was only one post of Sales Tax officer in the year 1961 and the same was increased into 10 in the year 1971 and again into 81 in the 1996, Delhi Government rightly initiated the proposal in the year 2013 for the encadrement of another 74 post of Sales Tax Officer [along with other ex-cadre posts equivalent to Deputy Collector] into DANICS as the same was created after 1996 and pending for encadrement till date. The same analogy holds good for other posts like Assistant



Commissioner, Deputy Secretary, Deputy Director etc. The word "**non-IAS and non-DANICS posts**" mentioned in the MHA letter dated 24.08.2023 has to be read in the above context only. i.e. posts such as Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc., which are Deputy Collector equivalent posts in Delhi and already identified for DANICS based on its functions and responsibilities cannot be called as non-DANICS posts, as functions and responsibilities of these posts are aligned with administrative experience and requirement of State Civil Service officers i.e. DANICS for Delhi.

NOTE- For Eg. The post of Sales Tax Officer (equivalent to Deputy Collector) has always been a part of DANICS cadre. Even the 2003 DANICS Rules confirm the same from schedule I.

Therefore, the afore-said posts identified for/or being manned by DANICS cannot be encadred/included in a State Subordinate Civil Service as being done by way of impugned Rules dated 24.12.2024, whereby new Group 'A' Cadre has been created in the DASS containing the posts, which have same nomenclature, role and responsibilities as already existing in DANICS cadre i.e. State Civil Service for Delhi, thus blurring the distinction between the State Civil Service and State Subordinate Civil Service and led to creation of parallel State Civil Service to DANICS in Delhi. Once, permitted, other



UTs will also follow soon and destroy the established civil service hierarchy in UTs.

6.4 Learned Senior counsel also submitted that the inclusion of Deputy Collector equivalent posts like Sales Tax officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc., in DASS cadre amounts to encroaching upon the domain and functions of the State Civil Service i.e. DANICS and changing the hierarchy of the services which has existed since 1886 and is being followed all over India in every other State Civil service as also the other sister services such as DANIPS. Therefore, the impugned 2024 amendment to DASS Rules is arbitrary in as much as the Deputy Collector equivalent posts already earmarked/identified/manned by DANICS have been encadred into DASS services, affecting the horizontal relativity (Between DASS and other similar services in other UTs and Delhi Police) and vertical relativity (Between DASS and DANICS), thereby going against the historical and hierarchical structure being arbitrary and is liable to be set aside.

6.5 Learned Senior Counsel also submitted that pertinently, the letter dated 23.08.2013 of the GNCTD to MHA was the right course as per the DOP&T guidelines for encadrement of 74 post of Sales Tax Officer along with other posts into DANICS Services being their ex cadre posts and are already



identified for DANICS and as per OM dated 30.09.2022 were required to be added to the DANICS under the ongoing cadre review, as the role, functions and responsibilities are same. Since, the DANICS cadre review was pending, DANICS Association filed OA 2770/2023 before this Tribunal for carrying out the DANICS cadre review as per the Delhi Government proposal dated 23.08.2013 and the same was allowed vide order dated 03.07.2024. When MHA and Delhi Government failed to complete the DANICS cadre review within eight weeks, CP No.692/2024 was filed and same is pending before this Tribunal. However, meanwhile, without the leave of this Tribunal, GNCTD notified the impugned rules including the same posts mentioned in Delhi Government letter dated 23.08.2013 in DASS cadre, in effect rendering the directions of this Tribunal *infructuous*. In support of above contention, reliance has been placed on the judgment of the Hon'ble Supreme Court in the matter of ***UOI Vs. Ashok Kumar Aggarwal***, reported in (2013) 16 SCC 147, para 46 thereof reads as under:-

"46. Placing reliance upon the earlier judgments in *Mulraj Vs. Murli Raghunathji and Gurunath Manohar Pavaskar Vs. Maharaj, Siujit Singh Vs. Harbans Singh, DDA Vs. Skipper Constructions Co(p) Ltd, Gurunath Manohar Pavaskar Vs Nagesh Siddappa Navalgund, this Court in Manohar Lal Vs. Ugrasen held that any order passed by any authority in spite of the knowledge of order of the Court is of no consequence as it remains a nullity and any subsequent action thereof would also be a nullity.*"



6.6 Learned Senior counsel also submitted that if the GNCTD would have followed the correct procedure, the cadre strength of DANICS would have increased at Entry grade which would have benefited the Grade I officers of the DASS cadre being the feeder cadre of DANICS and they would have been promoted to the next promotional post and their stagnation could have been removed long ago. However, by adding the Deputy Collector equivalent posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc. in DASS cadre, it is not only encroaching upon the DANICS posts and functions but also creating parallel Delhi State Civil Services which will result in utter chaos and administrative difficulties as same of Sales Tax Officer cannot be part of two different cadres and governed by different set of RR's **(One framed by President and other one by his Delegate i.e. Hon'ble Lt. Governor, Delhi)**. It will affect the vertical and horizontal relativity and also the link between the DANICS and DASS cadre which was also pointed out by the Kutty Committee and MHA letter dated 07.04.2025.

6.7 Learned Senior counsel also submitted that further, similar demands will also come from the State Subordinate services of other UTs also and DANICS will slowly become non-existent. It is also argued that since, by way of impugned RR dated 24.12.2024, new Group 'A' cadre has been inserted,



posts which are part of this newly created Group 'A' cadre historically were part of the DANICS Cadre and said Group 'A' cadre consists of posts which were ex cadre posts of DANICS Cadre and the same very posts were sought to be added to DANICS cadre in the cadre review proposal by GNCTD dated 23.08.2013 and at present said posts are being manned by DANICS officers, therefore, such amendment in the feeder DASS Cadre severely affects the DANICS Cadre and thus, DANICS officers have locus to impugn the amended Recruitment Rules issued vide notification dated 24.12.2024.

6.8 Learned Senior Counsel also argued that the creation of new posts/creation of new cadre and making rules for these newly created posts/cadre (Service Rules/Recruitment Rules) are two different actions and different procedure provided under the DoE and DOP&T guidelines to be followed.

6.9 Learned Senior counsel also contended that the impugned Rules of 2024 have purportedly been notified under Article 309 of the Constitution, read with Ministry of Home Affairs Notification dated the 13th July, 1959, which reads as under:-

"No. F.2(3)/RR/2022/S-IV/2036.- In exercise of the powers conferred by the proviso to Article 309 of the Constitution read with the Government of India, Ministry of Home Affairs Notification No.F 27/59-Him (i) dated the 13 July, 1959 and all other powers enabling him in this behalf, the Lt. Governor of the National Capital Territory of Delhi, in consultation with Union Public Service Commission, is pleased to amend the Government of National Capital Territory of Delhi Subordinate Service Rules, 2022 (as amended from time to



time), namely:"

6.10 Learned Senior Counsel argued that Article 309 does not confer any power on Government of NCT of Delhi to notify service rules. Article 309 confers power only to *Union or State, i.e., the President or Governors of States*. Article 309 does not confer any power to Hon'ble Lt. Governor of Delhi. Therefore, reliance upon Article 309 is misplaced.

"309. Recruitment and conditions of service of persons serving the Union or a State.-Subject to the provisions of this Constitution, Acts of the appropriate Legislature may regulate the recruitment, and conditions of service of persons appointed, to public services and posts in connection with the affairs of the union or of any State:

*Provided that it shall be competent for the President or such person as he may direct in the case of services and posts in connection with the affairs of the Union, and for the Governor^{2***} of a State or such person as he may direct in the case of services and posts in connection with the affairs of the State, to make rules regulating the recruitment, and the conditions of service of persons appointed, to such services and posts until provision in that behalf is made by or under an Act of the appropriate Legislature under this article, and any rules so made shall have effect subject to the provisions of any such Act."*

6.11 It is also submitted that Parliament has already passed the NCTD Amendment Act, 2023, incorporating Section 45 C which explicitly vests the power to frame all recruitment rules with the Central Government in respect of service conditions of officers posted in Delhi, which reads as under:-

"BE it enacted by Parliament in the Seventy-fourth Year of the Republic of India as follows:-

1.(1) This Act may be called the Government of National Capital Territory or Delhi (Amendment) Act, 2023.



(2) It shall be deemed to have come into force on the 19th day of May, 2023.

2. In the Government of National Capital Territory of Delhi Act, 1991 (hereinafter, referred to as the principal Act), in section 2, after clause(e), the following clauses shall be inserted, namely:-"

After the Parliament, has framed law in the form of GNCTD Amendment Act, 2023 by inserting Section 45 C under which only Central Government can frame the Rules (Service Rules/Recruitment Rules) in all service matters for Delhi. Therefore, 1959 delegation of the MHA or any other delegation issued before 19th May, 2023 (date of commencement of Section 45 C of GNCTD Amendment Act, 2023) under the proviso to Article 309 of the constitution; ceases to exist and it no longer holds the field as the appropriate legislature (Parliament) has made a provision for the same. Hence, any new service rules/RR for Delhi Government employees can be framed only under the provision of Section 45 C of the GNCTD (Amendment) Act, 2023 and not under the proviso to Article 309 of the Constitution as *the said field is already occupied by Section 45 C of GNCTD Amendment Act, 2023.*

6.12 Learned senior counsel also submitted that once Act has been framed by the Parliament then power cannot be exercised under proviso/second part of Article 309 of Constitution to make Recruitment Rules. Power has to be exercised by the Competent Authority as stipulated in the Act



and not under the proviso to Article-309 second part, which was only for a transitory period i.e. till Parliament exercise its power. Thus, it is contended that only the Central Government and not the Hon'ble Lt. Governor of Delhi is competent to frame/approve the impugned rules. The President of India and Governor of a State exercise two kinds of power, one in the capacity of the head of the Government and second in the capacity of President/Governor. Even though, the person is the same, but power can be exercised only according to the provisions of the law, meaning that the Head of the Government cannot exercise the power of the President/Governor and vice versa. Reference has been made to the following provisions of Constitution of India:-

"Article 239:(1) Save as otherwise provided by Parliament by law, every Union territory shall be administered by the President acting, to such extent as he thinks fit; through an administrator to be appointed by him with such designation as he may specify.. "

"Article 239 AA :(1) As from the date of commencement of the Constitution (Sixty-ninth Amendment) Act, 1991, the Union territory of Delhi shall be called the National Capital Territory of Delhi (hereafter in this Part referred to as the National Capital Territory) and the administrator thereof appointed under article 239 shall be designated as the Lieutenant Governor.

(7) (a)] Parliament may, by law, make provisions for giving effect to, or supplementing the provisions contained in the foregoing clauses and for all matters incidental or consequential thereto"

6.13 Learned senior counsel for the applicants further submitted that GNCTD Act, 1991 as amended from time to time, is an Act to **supplement the provisions of the**



Constitution relating to the Legislative Assembly and a Council of Ministers for the National Capital Territory of Delhi and for matters connected therewith or incidental thereto. However, the Article 309 states that "**subject to provisions of this Constitution**" means **subject to other articles including Article 239**, which deals exclusively with Administration of Union Territories including Delhi. Being a Special provision for administration of UTs, Article 239 prevails over Article 309 of the Constitution. The Article 239 states that "**Save as otherwise provided by Parliament by law**" means, once the Parliament enacts a law for the administration of UTs, the President is bound to administer the UTs as per the law enacted by the Parliament.

6.14 Learned Senior Counsel also submitted that the preamble to GNCTD Act, 1991 clearly states that this law was enacted by Parliament to supplement the provisions of the Constitution in administering Delhi. Once, Parliament enacted a law and inserted Section 45 C, the President power under Article 239 as well as under Article 309 has gone and President is bound to act as per Section 45 C of the GNCTD (Amendment) Act, 2023, as under Section 45 C, President is acting as Head of Union of India and under Article 239 and 309, he is acting in the capacity of President of India, even though both are same person. Once, President himself bound



by Section 45 C and could not use the powers under Articles 239 and 309; then question of his delegatee i.e. the Hon'ble Lt. Governor, Delhi exercising the delegated power does not arise. This position is clearly stated by the Hon'ble Supreme Court in the case of ***H.L. Rodhey and Ors. Vs. Delhi Administration and Ors.***, reported in AIR 1969 Delhi 246, as well as ***B S Yadav Vs State of Haryana***, reported in 1980 Supp SCC 524. Further, ***H.L. Rodhey and Ors. Vs. Delhi Administration and Ors.*** reported in AIR 1969 Delhi 246, was a case in respect of DASS SERVICES, 1967), wherein the Hon'ble Delhi High Court observed as under:-

"18. In Article 309 of the Constitution, there are only two entities for which rules may be made by the Governor of a State. viz. The Union of India and the, States. It is clear that Union Territories are not included in the States, inasmuch as there are no Governors of Union Territories. Article 1(3) of the Constitution specifically says that the Territories of India shall comprise (a) Territories of the States and (b) the Union Territories, This would show that the Union Territories are not included in the States. The expression "Union Territories" simply means Territory of the Union. This is, why Article 239 of the Constitution provides that such a Territory is to be administered by the President; who is the executive head of the Union. The Administrator, who may be appointed by the President to administer the Union Territory is simply an officer or an agent of the President. He is not an entity in his own right. He merely acts for the President. The power of the President to authorise the Administrator to make rules for the Central Services functioning in a particular Union Territory is expressly derivable from the proviso to Article 309, which says that "it shall be competent for the President or such person as he may direct" to make such rules.

It would appear, however, that Article 239 in its amplitude would also enable the President to make such rules as making of such rules is included in the Administration of



*the Union Territories, which can be carried on by the President through the Administrator. It is to be noted that in [1964] 5 SCR 294, paragraph (12) a fairly exhaustive enumeration of the powers exercisable by the President on his own behalf, as distinguished from those exercisable by him on behalf of the Union of India has been made. But this list does not include the powers exercisable by the President under Article 239 of the Constitution. It would follow, Therefore, that the powers under Article 239 are exercisable by the President as the head and on behalf of the Union of India. In Gobalowsamy v. Union Territory of Pondicherry, AIR 1966 Mad 298, a Division Bench of the Madras High Court has put the legal position as follows. Parliament has power to make laws for Union Territories, including Central Services functioning in the Union Territories (Nfithan Lal v. State of Delhi [1959] 1 SCR 445). **The President has, therefore, obviously the power to make rules for such services so long as the Parliament does not make laws regarding them.**"*

Thus, once Section 45 C of the GNCTD Amendment Act, 2023 has come into effect, the President power under Article 239 and Article 309 ceased to exist and the President is bound by Section 45 C of 2023 GNCTD Amendment Act.

6.15 The learned Senior Counsel appearing for the applicants has invoked the doctrine of occupied field and in this regard placed reliance on the decision of the Hon'ble Supreme Court in the case of **A. B. Krishna and Ors. Vs. The State of Karnataka and Ors.**, reported in 1998 3 SCC 495, relevant paras 8 and 9 of which read as under:-

"8. *The Fire Services under the State Government were created and established under the Fire Force Act, 1961 made by the State Legislature. It was in exercise of the power conferred under Section 39 of the Act that the State Government made Service Rules regulating the conditions of Fire Service. Since Fire Service had been specially*



established under an Act of the Legislature and the Government, in pursuance of the power conferred upon it under that Act, has already made Service Rules, any amendment in the Karnataka Civil Services (General Recruitment) Rules, 1977 would not affect the special provisions validly made for Fire Services. As a matter of fact, under the scheme of Article 309 of the Constitution, once a Legislature intervenes to enact a law regulating the conditions of service, the power of Executive, including the President or the Governor, as the case may be, is totally displaced on the principle of "**Doctrine of Occupied Field**". If, however, any matter is not touched by that enactment, it will be competent for the Executive to either issue executive instructions or to make a Rule under Article 309 in respect of that matter.

9. It is no doubt true that the Rule-making authority under Article 309 of the Constitution and Section 39 of the Act is the same, namely, the Government (to be precise, Governor, under Article 309 and Govt. under Section 39), **but the two jurisdictions are different. As has been seen above, power under Article 309 cannot be exercised by the Governor, if the legislature has already made a law and the field is occupied. In that situation, Rules can be made under the Law so made by the legislature and not under Article 309.** It has also to be noticed that Rules made in exercise of the rule-making power given under an Act constitute Delegated or Subordinate legislation, but the Rules under Article 309 cannot be treated to fall in that category and, therefore, on the principle of "occupied field", the Rules under Article 309 cannot supersede the Rules made by the legislature."

6.16 Thus, once Section 45 C has come into operation, the President power under Articles 239 and Article 309 ceased to exist and the president is bound by Section 45 C of 2023 Act and any Recruitment Rules for Delhi Government employees including DASS cadre can be framed by the competent authority as provided under Section 45 C of the 2023 Act and not under Articles 239 or the proviso to the Article 309 of the



Constitution. In support of the same, reliance has been placed on the decision of the Hon'ble Supreme Court in the case of **Surinder Singh Brar and Ors. vs. Union of India (UOI) and Ors.**, reported in(2013) 1 SCC 403. Para 43 thereof reads as under:-

"43: The issue deserves to be considered from another angle. While delegating the power, authority or jurisdiction vested in him by or under any law, rules or Regulations as applicable to the Union Territory of Chandigarh, the Administrator had used the expression 'on the date of this notification'. This necessarily implies that the power of the appropriate Government conferred upon or entrusted to the Administrator by the President under Article 239(1) after 25.2.1988 were not delegated to the Adviser. It is also apposite to note that Notification dated 14.8.1989 was issued under Article 239 (1) in supersession of all previous notifications relating to the exercise of power and functions under the Act by the Administrators of various Union Territories. **Therefore, even if it is assumed that vide Notification dated 25.2.1988 the Administrator had authorised the Adviser to exercise the power of 'the appropriate Government' under the Act, after the issuance of Notification dated 14.8.1989, the said delegation will be deemed to have ceased insofar as the exercise of power of the appropriate Government' under the Act and the Rules framed there under is concerned and in the absence of fresh delegation by the Administrator, the Adviser could not have exercised the power of the appropriate Government and sanctioned the acquisition of land for the purposes specified in Notifications dated 26.6.2006 and 2.8.2006 nor could he symbolically accept the recommendations of the LAO and record his satisfaction on the issue of need of land for the specified public purposes. "**

6.17 Learned Senior Counsel emphasized that once Section 45C of 2023 Act has come into effect, the earlier delegation to the Hon'ble Lt. Governor of Delhi under Article 309 ceased to



exist and the Hon'ble Lt. Governor of Delhi can frame the rules only after any fresh delegation of power under Section 45C of the GNCTD (Amendment) Act, 2023 and not on the basis of any earlier delegation prior to 19.05.2023 (date of commencement of Section 45C of GNCTD Amendment Act, 2023). In support of above submissions, reliance has been placed on the decision of the Hon'ble High Court of Patna in ***Tardih Prakh and Matasyajivi Swablambi Sahakari Samiti Ltd. And Ors. Vs. The State of Bihar and Ors.***, reported in 2008(2)BLJ23, para 5 thereof reads as under:-

"5.....Both the acts provide that if an application is duly made fulfilling the conditions and the criteria laid down under the Act and the Rules framed thereunder, then the Registrar is under an obligation to register. Under both the Acts either prior to or at the stage of registration, State Government has no role to play. Then it would be seen that under both the Acts, the State Government has been given power to appoint people to assist Registrars or to delegate power of the Registrar to authorities. On these delegations which have to be done by notification, the Registrar is not denuded of his power but certain other persons in certain contingencies are delegated with additional authority of the Registrar. These delegations, as the power goes, can be made and if so can be withdrawn. It is not that once power is delegated, it remains operative for all times. A person may be empowered to do as a delegate but his power may cease on an appropriate notification being issued where after he will have no authority to act as such."

Thus, once Section 45 C has come into effect and notified, the earlier delegation to the Hon'ble Lt. Governor under Article 309 ceased to exist and the Hon'ble Lt. Governor can frame the rules only



after any fresh delegation of power under Section 45 C of the GNCTD (Amendment) Act, 2023 which was notified on 19.05.2023 (date of commencement of Section 45 C of GNCTD Amendment Act, 2023).

6.18 Learned Senior counsel further submitted that in ***Asha Rani Gupta Vs. Ravindera Memorial Public School***, reported in 2024 DHC 7903 DB. Para 20 of the same provides as under:-

"20:....From times of Taylor Vs Taylor (1875) 1Ch D 426 through Nazir Ahmed Vs. King Emperor AIR 1936 PC 253 and a veritable plethora of judgments of the Supreme Court including State of UP vs Singhara Singh 1963 INSC 173, is well settled principle that where a statute requires a particular act to be done in a particular manner, that act must be done in that manner or not done at all, all other modes of doing the act being necessarily forbidden."

Thus, when Section 45 C provides that the Central Government is the competent authority to make rules; then rules cannot be made by any other authority except Central Government until powers are delegated under Section 45C of 2023 Act again.

6.19 Notwithstanding that such notifications have ceased to exist, learned counsel also submitted that the Notification dated 13.07.1959 does not give any power to the Delhi Government to frame the impugned Rules as DASS is an Organised Civil Service and the initial DASS Rules, 1967 itself framed only with the prior approval of Central Government 1959 Notification. Learned Senior Counsel further submitted that nowhere in the 1959 Notification, it has been provided that the Delhi Government has any power to frame recruitment rules



for organised civil services. Further, it is clear from DoP&T's OM dated 31.12.2010 *Guidelines on framing/amendment/relaxation of recruitment rules* that there is a difference between Organised Services and Group A/B Posts for the purposes of notification. Para 2.1.1 of the said OM provides as under:-

"2.1.1 All recruitment rules including their amendments should be approved at the level of Minister-in-Charge, unless the Minister has by general or special order authorized such approval at a lower level(s). The Ministries/Departments may put up proposals for suitable delegation for approval of the Minister-in-Charge. The following scheme of delegation is suggested:

<i>Posts/Services</i>	<i>Authority</i>
<i>Groups C</i>	<i>Joint Secretary</i>
<i>Groups A & B Posts/Services</i> <i>(except those indicated below)</i>	<i>Secretary</i>
<i>Framing of or important amendment to Recruitment Rules for posts of Heads of Departments or Service Rules for Organized Services"</i>	

However, there is no explicit provision under the 1959 Notification for the same. No power to frame service rules for organised services delegated vide 1959 MHA notification.

6.20 Learned counsel further submitted that the original DASS Rules, 1967 were notified after having taken prior approval from the Union Government. The impugned Rules have not been framed by the competent authority and framed without the approval of the Central Government.

6.21 Further, it is submitted that in paras 1 and 19, the Hon'ble Supreme Court in the case of ***H.L. Rodhey & Ors. Vs Delhi Administration & Ors.***, reported in AIR 1969 Delhi 246, notes



DASS is Central Civil Service. As such DASS is neither All India Service nor State Public Service as Delhi is not a State. Hence, DASS can only be a Central Civil Service, which is a feeder cadre for the DANICS thus having promotional avenues in DANICS. Therefore, the President can frame/delegate the power to frame Recruitment Rules under the proviso to Article 309 of the constitution only for Services of the Union i.e. Central Civil Services not for any other service. If DASS is not a Central Civil Service, then impugned rules could not have been framed under the proviso to Article 309 of the Constitution of India. Further, impugned Rules consist of Rule-3, which itself classify the DASS as Central Civil Services Group 'A', 'B' and 'C'.

6.22 Further, it is submitted that the GNCTD in its reply dated 17th March, 2025 in OA No.474/2025 at para 3 of Preliminary Objections itself states that Senior Scale in DASS/GNCTDSS is Central Civil Service Group 'A' and further at para 1 of para-wise reply categorically admitted that DASS/GNCTDSS is an Organized Central Civil Services. Article 239 of the Constitution deals with Union Territories. Further, it is submitted that NCT of Delhi was borne by way of Article 239 AA of the Constitution. Hence, it is very clear that Delhi is an UT with legislature and not a State. President cannot delegate power under Article 309 of the constitution for framing recruitment rules for State Government employees. He can do so only for Central Government employees, including those working



under Union territories. Hence, it is clear that Delhi is an UT not a State. Delhi is not a State and Delhi is an Union Territory with legislature and Parliament has full power to legislate on all subjects of Delhi. Article 239 AA (3) provides as under:-

"Article 239AA(3)

- (a) Subject to the provisions of this Constitution, the Legislative Assembly shall have power to make laws for the whole or any part of the National Capital Territory with respect to any of the matters enumerated in the State List or in the Concurrent List in so far as any such matter is applicable to Union territories except matters with respect to Entries 1, 2 and 18 of the State List and Entries 64, 65 and 66 of that List in so far as they relate to the said Entries 1, 2 and 18*
- (b) Nothing in sub-clause (a) shall derogate from the **powers of Parliament under this Constitution to make laws with respect to any matter for a Union territory or any part thereof**"*

6.23 Further, learned counsel submitted that DoP&T is the nodal Department of Govt. of India for framing rules/guidelines for administering Central Civil Services under the Allocation of Business Rules, 1961 and the DoP&T is also the nodal department for framing rules related to recruitment, promotion, reservation in Central Services. In support of above contention, learned Senior Counsel placed reliance on the decision of the Hon'ble Supreme Court in the case of **Bir Singh Vs DJB & Ors**, reported in (2018) 10 SCC 312: at para 48, wherein the Hon'ble Apex Court notes that DoP&T is the nodal ministry for regulating the conditions of Service of all Central Civil Services as per Allocation of Business Rules, 1961. Hence, Govt. of India, i.e., DoP&T and DoE OMs /Circulars/instructions are



binding on GNCTD.

6.24 Learned senior counsel also drew our attention of provisions of Article 73 of the Constitution, which reads as under:-

"Article 73 of the constitution: Extent of executive power of the Union

(1) Subject to the provisions of this Constitution, the executive power of the Union shall extend-

(a) to the matters with respect to which Parliament has power to make laws; and.."

Since, under Article 239AA (3) (b), Parliament has power to legislate on any subject for Delhi and for the entire territory of Delhi; DoP&T and DoE are competent to issue guidelines for Central Civil Services in Delhi. In support of above contention, reliance has been placed on the decision of the Full Bench of this Tribunal in OA No.3278/2010, titled **Garima Singh Vs. Union of India**, dated 9.5.2011, para 18 thereof reads as under:-

"18. Therefore, we pass the following order:

(i) The impugned order dated 30th June, 2022 (Annex-A-1); order dated 29th August, 2022 (Annex-A-2); order dated 12th September, 2022 (Annex-A-3) and orders dated 24th November, 2022 and 06th June, 2023 (Annex-A-4) are quashed. The promotion of the applicant to Income Tax Inspector and to Income Tax Officer is restored to 01st June, 2011 and 01st March, 2016 respectively."

6.25 Thus, learned Senior Counsel argued that DoP&T OMs can well be considered as if issued by the executive of the Union in the legislative powers conferred upon it by Article 73 of the constitution and State in exercise of its executive power is charged with the duty and responsibility of carrying on the general administration of the



State, and so long as the State Government does not go against the provisions of the Constitution or any law, the width and amplitude of its executive power cannot be circumscribed, and further that if there is no enactment covering a particular aspect, certainly the Government can carry on the administration by issuing administrative directions or instructions until the legislature makes a law in that behalf. In addition to that, these OMs are directives and even though Article 73 of the Constitution may not have been specifically mentioned, the same can be treated to have come into existence by powers exercised by the executive under Article 73 of the Constitution.

6.26 In support of above submission, learned Senior Counsel placed reliance on the judgment of the Hon'ble Supreme Court in the matter of ***UOI Vs. Ashok Kumar Aggarwal***, reported in (2013) 16 SCC 147, para 60 whereof reads as under:-

*"60. Similarly, a Constitution Bench of this Court in Naga people's Movement of Human Rights Vs UOI 1998 2 SCC 109 **held that the executive instructions have binding force provided the same have been issued to fill up the gap between statutory provisions and are not inconsistent with the said provisions.**"*

6.27 It is further submitted that the SAHAI Committee Report that was constituted by GNCTD at various places relies upon DOP&T's OM & Guidelines in its Report. At Para 2.4.6 & 2.4.7 of Sahai Committee that DOP&T's guidelines are being followed by GNCTD. Thus, the GNCTD is bound by the DOP&T's OMs dated 30.09.2022



and 13.10.2015 and guidelines on various subjects including for Cadre Review and the GNCTD was bound to follow the procedure provided therein for creating new Group 'A' Cadre as has been created under cadre review exercise. However, GNCTD failed to follow the due procedure as contemplated under DOP&T's Guidelines before notifying the impugned rules. Further, it is submitted that the impugned Rules are the culmination three separate and independent activities, each governed by different set of procedures/guidelines of Govt. of India, i.e., DOP&T and DoE, but, GNCTD failed to follow the due procedure at each three stages before notifying the impugned rules dated 24.12.2024. Such as, (i) Introduction of "new/higher pay scale" of level 11 in DASS Service; (ii) Formation of a "new Group 'A' Cadre" in DASS Service; and (iii) "Framing the Recruitment Rule" for the new Group. 'A' Cadre by amending the DASS Rules, 2022.

6.28 With regard to **stage-1**, i.e., Introduction of new pay scale of GP Rs 6600/- i.e. Level 11 / new grade of senior Scale in DASS cadre, at the outset, learned counsel submitted that this issue was extensively argued by the applicants; however neither of the respondents has made any submissions regarding this issue: which amounts to admitting the facts brought on record by the applicants which are orders passed by the DoE communicated by the MHA to the GNCTD.



6.28.1 Further, as per the Allocation of Business Rules, 1961, the subject "Financial Rules, regulations and Delegation of Financial power" is allocated to Department of Expenditure, Govt. of India.

6.28.2 Similar to DoP&T's instructions, the instructions issued by DoE also binding on Delhi Government being UT. DoE vide note 24.06.2013 clearly stated that Delegation of power for creation of posts does not include power to introduce "new pay scales/upgradation of existing pay scales of any posts" and DoE is authority to approve the new pay scales.

6.28.3 Before passing the impugned notification, i.e. DASS Rules, 2022; DASS does not have pay scale in level 11 of the pay matrix. The impugned notification introduced the new pay scale in the level 11 in the pay matrix. However, the same was introduced without following the due procedure. The pay scales of all Central Services i.e. Central Government employees, including UT administration employees are recommended by the Central Pay Commission and recommendations of Central Pay Commission is always implemented with the approval of Department of Expenditure, Government of India. Further, it is submitted that new pay scales/upgradation of pay scales/modification of pay scales of DASS cadre was always carried out as per the recommendations of Central Pay Commission and with the approval of Department of Expenditure, GoI. However, in the present case, new pay scale at level 11 in the pay matrix was introduced in DASS without the



recommendations of the CPC and without the approval of Department of Expenditure, MoF, GoI. Hence, not valid. The Clause 2 of terms of reference of 7th CPC states that:

"2. The terms of reference of the Commission will be as follows:-

- (a) *To examine, review, evolve and recommend changes that are desirable and feasible regarding the principles that should govern the emoluments structure including pay, allowances and other facilities/benefits, in cash or kind, having regard to rationalization and simplification therein as well as the specialized needs of various Departments, agencies and services, in respect of the following categories of employees:-*
 - (i) *Central Government employees-industrial and non-industrial;*
 - (ii) *Personnel belonging to the All India Services;*
 - (iii) ***Personnel of the Union Territories;***
 - (iv) *Officers and employees of the Indian Audit and Accounts Department;*
 - (v) *Members of the regulatory bodies (excluding the RBI) setup under the Acts of Parliament: and*
 - (vi) *Officers and employees of the Supreme Court*

6.28.4 On the proposition of law of doctrine of past practice, reliance has been placed on the following decisions:

- (i) ***N Suresh Nathan & Anr Vs. UOI***, reported in (1992) 1 SCC Supp 584, paras 5 and 6 :

"5.....The real question, therefore, is whether the construction made of this provision in the rules on which the past practice extending over a long period is based is untenable to require upsetting it. If the past practice is based on one of the possible constructions which can be made of the rules then upsetting the same now would not be appropriate. It is in this perspective that the question raised has to be determined.



6.....The Tribunal was therefore, not justified in taking the contrary view and unsettling the settled practice in the department. "

(ii) **State of UP Vs. Santosh Kumar Mishra and Anr.**, reported in (2010) 9 SCC 52, paras 32 and 43,

"32.... While considering the said question, this Court in **Shailendra Case (2007) 5 SCC 535** had also the occasion to consider the possibility of two views being taken while interpreting a particular set of service rules. In such a situation, this Court held that the **rules should be interpreted in consonance with the practice followed by the department for a long time**. In fact, while arriving at such a conclusion, this Court had also the occasion to consider the earlier case of N. Suresh Nathan (1992)1 SCC Supp 584.

43. As indicated hereinbefore, in this case, **a certain set of rules were applied in a manner** which deprived the private respondents of an opportunity to be considered for appointment as Pharmacist, despite having acquired the requisite qualification and being deprived of appointment once again by discarding the same rules to their detriment. In our view, the decision in N. Suresh Nathan is more apposite to the facts of this case. Of Course, this is not a case for applying the "doctrine of past practice" alone, in addition, this is a case which involves the deprivation of certain candidates by application of the practice differently at two different points of time."

6.28.5 In support of past practice being followed by the GNCTD, reliance has also been placed on the following documents:

Phase I

The Fifth CPC recommended for upgradation of pay scales of Grade II DASS and Grade I DASS. Fifth CPC revised pay scale for Grade I DASS was implemented with the **approval of Ministry of Home Affairs**, GoI in the year 1996 vide



GNCTD order dated 17.09.1996. The pay scales of Grade I DASS was again revised with the **approval of Department of Expenditure and Ministry of Home Affairs, GoI** in the year 2001. MHA letter dated 18.01.2001

Phase-II

In 2006, Delhi Government **unilaterally** introduced higher pay scales in DASS **without the approval** of DoE and MHA. MHA referred the issue to DoE for advice. DoE Note dated 03.02.2009 categorically stated that "Ministry of Finance (Department of Expenditure) is the competent authority for creating/upgrading posts and **grant of higher pay scales**. Therefore, any case of grant of higher pay scales to any post(s) including **grant of higher pay scales** on non-functional basis without the approval of this ministry is *ab-initio* irregular". The decision of DoE was communicated to Delhi Government by MHA vide letter dated 09.04.2010 and Delhi Government was directed to implement /enforce the decision/direction of DoE. GNCT of Delhi vide letter dated 15.11.2012 stated that granting of higher pay scales to DASS cadre is **within the delegated power** to create Group A, B, C posts and within the delegation granted by MHA notification dated 13.07.1959. DoE vide note dated 24.06.2013 rejected the above argument of Delhi Government and stated that delegated power to create posts **does not extend to**



granting higher pay scales to DASS cadre. The above decision of DoE was communicated to Delhi Government by MHA vide letter dated 11.07.2013. The Delhi Government sought **ex-post facto approval of DoE** for granting higher pay scales to DASS cadre vide letter dated 02.09.2013. DoE granted the **ex-post facto approval** for granting higher pay scales to DASS cadre vide note dated 10.01.2015. The DoE decision clearly refer to the 6th CPC recommendations. **This makes it clear that recommendation of the CPC is paramount while examining the issue of introduction of new pay scale.** The above decision of DoE was communicated to Delhi Government vide letter dated 12.01.2015. GNCTD issued order for **amending DASS Rules** as per the approval received for granting higher pay scales to DASS cadre. i.e. Procedure is **first to get the approval of DoE and MHA for granting higher pay scales to DASS then amend the DASS Rules** vide order dated 12.01.2015. But Delhi Government introduced the new higher pay scale at level 11 by way of amended the impugned rules, without the approval of Department of Expenditure and MHA. In 2015; Delhi Government **granted the higher pay scales** to DASS cadre as per the ex-post facto approval issued by Department of Expenditure and MHA. GNCTD order no. 56 & 57 dated 03.02.2015. The impugned notification granted a higher pay scale at level 11 to DASS cadre without the



approval of MHA and Department of Expenditure. The respondents neither shown any document which confer the power on LG/Delhi Government for introducing the new pay scale in level 11 of pay matrix in DASS service nor given any valid reason for not following the established procedure i.e. Recommendations of Central Pay Commission and approval of Department of Expenditure and MHA GoI.

6.28.6 The respondents without dealing with the issue have made submissions that DoE, GoI approval is not required as financial implication is 'Nil'. However, the real question to be examined is who is having the power to decide on introduction of higher pay scale in DASS cadre. The power to grant higher pay scale at level 11 in DASS Cadre lies with the DoE and MHA and DoE does the same as per the recommendations of Central Pay Commission. **The GNCTD does not have the required power.** Further, financial implication is not the primary consideration while introducing the higher pay scale in any cadre. First, DoE will examine the desirability of introducing higher pay scale in DASS cadre, its impact on other services and cadres including promotional cadre i.e. DANICS, horizontal and vertical relativity with similar services in Central Government as well as in other UTs. Financial implication is only a secondary issue. The power is clearly vested with DoE and the proposal for grant of higher pay scale at level 11 in DASS Cadre was not even forwarded to MHA for approval of the DoE. **The GNCTD reliance upon financial**



implication being Nil does not absolve it from following the required procedure and obtaining the mandatory approvals of DoE and MHA.

6.29 With regard to **Stage-II**, i.e., creation of new Group A cadre in DASS Service, it is respectfully submitted that the applicants have already demonstrated that DASS is a Central Civil Service and DoP&T's instructions are binding/applicable to DASS Service. However, new Group 'A' Cadre was introduced in DASS Service without following the due procedure mentioned in the DoP&T OM dated 30.09.2022. As before the impugned notification, i.e. DASS Rules, 2022, DASS consists only Group 'B' and Group 'C' cadres. The impugned notification and the order no.322 dated 10.11.2023 introduced the new Group 'A' cadre in DASS. However, the same was introduced without following the due procedure prescribed by the DoP&T's OM dated 30.09.2022, as contemplated under Clause 4.7 and Clause 5.2.(ix) of the said OM. As the Clause 4.7 clearly states that *"the above procedure would be applicable in case of other proposals like formation of new services/Group A cadre,...."*. The Delhi Government formed a new Group 'A' cadre in DASS, hence, the clause 4 of DoP&T's OM dated 30.09.2022 is applicable and binding.

6.29.1 Further, Clause 5.2 (ix) clearly states that when cadre review leads to any change in the status of service/cadre from Group 'B'/'C' to Group 'A', then the clause 4 of DoP&T's OM dated 30.09.2022 is applicable. Since, Status of DASS being a Group 'B' &



'C' cadre changed into Group 'A', 'B' & 'C' cadre, procedure mentioned in the clause4 of DoP&T's OM dated 30.09.2022 is applicable and binding. MHA also vide letter dated 07.04.2025 stated the same.

6.29.2 It is also submitted that the respondent/GNCTD has created a Group 'A' Cadre and not simply posts as the same is evident from the following factors, which reflect the difference in creation of Cadre and Posts:

General feature of creation of new cadre vide GNCTD Order dated 10.11.2023	General feature of creation of new post vide GNCTD Order dated 9.10.2020
Consists of 'Duty posts and reserves'	Consists of only posts
Consists of posts belongs to 'various departments' under government/ Administration	Consists of posts of only one department
Proposal is moved by the 'Cadre controlling Authority'	Proposal is moved by the Administrative department concerned
Done as 'part of cadre review'	Done outside the cadre review
Posts are created as part of a 'particular service' whose cadre review is being done	Posts are created as ex-cadre posts in the 'department concerned' and these ex-cadre posts will be encadred into appropriate service based on its functions and responsibilities during the subsequent cadre review
'Service Rules' are notified for cadre	Recruitment Rules are notified for posts

6.29.3 Even if it is assumed that Delhi Government only created the posts and not a new Group 'A' cadre, the Delhi Government failed to follow the procedure prescribed by Finance Department, GNCTD order dated 21.02.1997.

6.29.4 It is also submitted that as per the Finance Department,



GNCTD order dated 21.02.1997 for creation of plan posts, the mandatory condition should be *"plan scheme under which posts are proposed to be created should be approved by the planning commission and included in the annual plan"*. Since, the planning commission and concept of annual plan and five year plans are already abolished in the year 2014 itself, the question of planning commission approving the annual plan for the year 2023-24 does not arise. **Hence, GNCTD order dated 10.11.2023 is not related to plan posts.** As per the Finance Department, GNCTD order dated 21.02.1997 for creation of non-plan posts, approval of Finance Minister and approval of Delhi Government Cabinet is mandatory. However, the respondents failed to show any documentary evidence to prove that they have followed the procedure prescribed by the Finance Department, GNCTD order dated 21.02.1997 before issuing the order dated 10.11.2023. On the other hand letter dated 20.08.2023 written by the then Chief Minister, Delhi to Lt. Governor, Delhi proves beyond doubt that Delhi Government issued the order dated 10.11.2023 without following the procedure prescribed by the Finance Department, GNCTD order dated 21.02.1997 and without the mandatory approval of Delhi Cabinet. Thus, Order No.322 dated 10.11.2023 is illegal and not valid as the same was issued without following the procedure prescribed by the Finance Department, GNCTD order dated 21.02.1997.

6.29.5 With regard to **STAGE-III**, i.e., framing Recruitment Rules for the newly formed Group 'A' cadre in DASS by way of



impugned notification dated 24.12.2024, learned Senior counsel argued that the power to frame RR for the employees of the Delhi Government now vested with the Central Government after Section-45 C by virtue of 2023 Act and the power is no longer vested with the GNCTD as explained hereinabove. The procedure prescribed by DoP&T's OM dated 13.10.2015 (**Procedure to be followed while notifying the Recruitment Rules**) and DoP&T's OM dated 18.07.2001 (**No Dual channel of promotion**) has not been followed by the respondents before notifying the impugned notification.

6.29.6 Learned counsel also submitted by referring to the DoP&T's OM dated 13.10.2015 that the Delhi Government issued the impugned notification without waiting for the MHA to dispose the representations submitted by the applicants and without consulting the DoP&T and Law Department of GoI. Hence, the same is not valid. Further by referring to DoP&T's OM dated 18.07.2001, it is also submitted that through the impugned notification, Delhi Government introduced dual channel of promotion, i.e. Grade I DASS are eligible for promotion into senior scale in DASS as well as for Entry Grade in DANICS and violated the DoP&T's OM dated 18.07.2001. Hence, invalid.

6.29.7 Learned Senior Counsel further argued that the respondents have relied upon the saving clause in the GNCTD (Conditions of Service of Officers and other employees) Rules, 2025, notified on 07.07.2025; which were framed under Section 45C by the



Central Government. However, the Rule 12 contains the Saving clause which only protect those Recruitment rules which are either initiated or issued before the commencement of the Act i.e. issued or initiated before 19th May,2023. But the impugned notification is issued only on 24th December, 2024 i.e. after the commencement of the GNCTD (Amendment)Act, 2023. Hence, not protected by the saving clause. In support of above submission, reliance has been placed by the learned Senior counsel on Clause 1.1 of DoP&T's OM dated 31.12.2010, which specifically provides that issue/process of framing/amending the recruitment rules will come into picture only after a new post/service is created or post is upgraded or any service is restructured; because creation of post/cadre/service and framing / amending recruitment rules for any post/cadre/service **are two different activities independent of each other** and governed by the guidelines issued by two different departments of GoI, i.e. DoE for creation of post and DoP&T for cadre review/creation of new Group 'A' cadre and framing and amendment of recruitment rules. However, in the present case, the order creating the new Group 'A' cadre was issued only on 10.11.2023 i.e. any process to amend the impugned rules can start only after 10.11.2023 i.e. after the GNCTD (Amendment) Act, 2023 came into effect. Hence, not protected by the saving clause. The word initiated can well be construed only after issuance of draft Recruitment Rules inviting comments of all stake holders as per DoP&T's OM dated 13.10.2015.

6.29.8 Draft Recruitment Rules implies the intent of the



authority to amend/ frame the recruitment rules. Draft Recruitment Rules of the impugned rules was issued on 7th May, 2024. Hence, the actual process of amending the impugned notification started only on 7th May, 2024 i.e. after the commencement of GNCTD (Amendment) Act, 2023. Hence, not protected by the saving clause.

6.29.9 The respondent claim that the Hon'ble Lt. Governor approved the impugned notification/cadre restructuring proposal in 2018 only; is not supported by any documentary evidence as the respondents failed to produce the relevant file where the approval of the Hon'ble Lt. Governor is taken to support their claim. On other hand, the GNCTD letters dated 16.7.2018 & 19.7.2022, MHA letter 6.07.2022 and MHA affidavit dated 20.7.2022 clearly establish that the Hon'ble Lt. Governor has not approved for creation of Group 'A' cadre in DASS in the year 2018. The above communication categorically states that introduction of higher pay scale and creation of new Group 'A' cadre in DASS was not approved by the Hon'ble Lt. Governor, Delhi in the year 2018; as the same has inter-service implication and beyond the competence of the Hon'ble Lt. Governor, Delhi. The Hon'ble Lt. Governor, Delhi simply directed the Services Department of GNCTD to forward the SAHAI Committee recommendations related to introduction of higher pay scale and creation of new Group 'A' cadre in DASS along with DANICS Association representations to MHA for due examination as the same has inter-service implication and beyond the competence of the Hon'ble Lt. Governor, Delhi. In support of above submission,



reliance is placed on the judgment of the Hon'ble Supreme Court in the matter of ***Haryana State Industrial and Infrastructure Development Corporation Ltd. and Ors. Vs. Deepak Aggarwal and Ors.***, reported in (2023) 6 SCC 512, wherein the Hon'ble Supreme Court dealt with the meaning of the "Word" "initiated". The Hon'ble Supreme Court held in paras 34, 35 and 40 as under:

"34. In the light of the above discussion and taking note of the legislative intention we have no hesitation to hold that the point of initiation of land acquisition proceedings under the LA Act for the purpose of Section 24(1) of the 2013 Act, is issuance and publication of Section 4(1) Notification in the Official Gazette of the appropriate Government.

35. We think it only befitting to supplement further reasons for supporting our conclusion as above. A perusal of Section 4 of the LA Act would reveal that a preliminary notification under Section 4(1) is issued whenever it appears to the appropriate Government that land in any locality is needed or likely to be needed for any public purpose. The said formal expression of the decision takes concrete shape and forms only on its publication in the Official Gazette. It is only upon issuance and publication of a notification under Section 4(1) that any officer, either generally or specially authorised by the appropriate Government and his servants and workmen could lawfully enter upon and survey and take levels of any land in such locality in terms of sub-section (2) thereof.

40. We think that while considering those questions we will have to bear in mind the purposes and the legislative history of the 2013 Act and also the intention of the legislature in drafting the same in the manner in which it now exists. We have already dealt with those aspects. One crucial aspect discernible from Section 24(1)(a) has also to be taken note of in this context. The combined effect of Section 24(1) and clause (a) thereof is that if land acquisition proceeding under the LA Act was initiated prior to 1-1-2014, the date of coming into force of the 2013 Act, and if it was not culminated in an award under Section 11 of the LA Act, then all the provisions of the 2013 Act relating to the determination of compensation should apply to such acquisition proceedings. Thus, it is obvious that in case of non-passing of an award in terms of Section 11 of the LA Act where the acquisition proceedings have been



initiated prior to 1-1-2014, all provisions under the 2013 Act relating to the determination of compensation alone would apply to such acquisition proceedings. In other words, it would mean that in such circumstances the land acquisition proceedings should continue, but all the provisions relating to the determination of compensation under the 2013 Act alone will be applicable to such proceedings, meaning thereby, the 2013 Act would come into play only at that stage."

6.29.10 Thus, the date of initiation of the impugned notification can only be 7th May, 2024 when the Draft Recruitment Rules were published for inviting comments of stakeholders and not before that. Hence, not protected under the saving clause. Learned Senior Counsel argued that the Hon'ble Supreme Court held that saving clauses must be interpreted strictly and if a situation is not expressly saved, it will not be presumed, as held in ***State of Rajasthan v. Mangilal Pindwal***, reported in (1996) 5 SCC 60. Learned Senior counsel also relied upon Rule 11 which contains the Residuary powers under the GNCTD Rules, 2025. However, the GNCTD Rules, 2025 does not have any provision related to framing/amending the recruitment rules. Hence, part of residuary power the Hon'ble Lt. Governor can make rules for these subjects only with the approval of Central Government and until such rules are framed by the Hon'ble Lt. Governor with the approval of Central Government, rules applicable to other employees of Central Civil Services i.e. Rules/OMs/Circulars issued by DoE and DoP&T will be applicable to Delhi Government employees and DASS. The GNCTD Rules, 2025 made under the GNCTD (Amendment) Act, 2023 protect only the recruitment rules initiated or issued before 19th May, 2023. The



impugned notification neither initiated nor issued before 19th May, 2023. Hence, not protected by the saving clause. Learned counsel also argued that the impugned rules are in conflict with DANICS rules framed by President of India as the impugned rules prescribes different set of recruitment rules for posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc. than framed by President of India i.e. DANICS Rules, Hence, not valid. In support of above submissions, learned counsel submitted that as per the doctrine of occupied field, the President under proviso to Article 309 of the Constitution framed the recruitment rules for posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc. in the form of DANICS Rules, 2003 for posts in GNCTD and the same is already operating since 1961. However, the Hon'ble Lt. Governor, Delhi-delegatee of President again framed the recruitment rules for the same posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc. vide impugned notification for posts in GNCTD. The recruitment rules framed by the Hon'ble Lt. Governor, Delhi through impugned notification and recruitment rules framed by President vide DANICS rules are in conflict with each other, as these rules provides two different set of recruitment rules for the same post in same department. However, as per the settled law, in case of conflict, the rules framed by President prevails over the rules framed by his delegate i.e. the Hon'ble Lt. Governor. Hence, the impugned notification framed by the Hon'ble Lt. Governor is not valid.



6.29.11 Learned Senior Counsel also argued that only DANICS being a State Civil Service for GNCTD can have a legal rights over posts, namely, Deputy Collector equivalent posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc. and not DASS a State Subordinate Civil service. As the posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc. are Deputy Collector equivalent posts and as per the settled law vide Aitchison Public Service Commission report, these posts are included in DANICS since 1961. As such, as per the settled law vide Aitchison Public Service Commission report, DASS consists of only posts like Assistant Sales Tax officer, Superintendent etc., which are equivalent to Tehsildar. DASS never had Deputy Collector equivalent posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, and Deputy Director etc. till the issuance of impugned notification. Learned counsel also submitted that as per the clause 2 (vii) of Section 4 on Objective of Cadre review as contained in the DoP&T's OM dated 30.09.2022, these posts can only be included in DANICS as DASS does not discharge the duties and responsibilities of these posts even today. These posts are held by DANICS officers since 1961 and even today. Delhi Government themselves sent the proposal to include these posts in DANICS cadre in 2013 and process is still going on. The MHA vide their counter reply dated 03.05.2024 filed in OA 4107/2023 at para 4 categorically stated that *"GNCTD has given clear undertaking that no DANICS post, as mentioned in Schedule I (Part B &C) will be included or abolished for creation of posts in DASS cadre"*. Post means post only;



not the number as the number keeps changing according to the requirement. For e.g. Delhi Government created two more districts recently, accordingly new posts of SDM, ADM and DM are created for these newly created districts. Since, these newly created posts are yet to be included in the DANICS schedule, it cannot be called as non-DANICS posts. Since, these posts are part of DANICS since 1961 and are held by DANICS officers even today, DANICS has legitimate expectation that these should be included only in DANICS. In support of above submissions, reliance has been placed on the decision of the Hon'ble Supreme Court in the case of ***Confederation of Ex-Servicemen Associations and Ors. Vs. Union of India***, reported in (2006) 8 SCC 399, para 14 whereof is relied upon, which reads as under:-

"14. We have given anxious and thoughtful consideration to the rival contentions raised by the parties. So far as the preliminary objection regarding maintainability of the petition is concerned, it may be stated that the petitioner has asserted in the petition that it is a Confederation of five ex-servicemen Associations formed in furtherance of common cause. The aims and objects of the Confederation have also been annexed as set out in the MoU (Annexure 'P-1'). In the affidavit in reply filed by the Under Secretary working with the Ministry of Defence, it was stated that he is 'not aware' of the existence of the petitioner organization. He, however, stated that the organization 'does not seem' to be registered body to represent the cause of ex-servicemen. The rejoinder affidavit unequivocally states that the objection raised by the Union of India is incorrect. The Confederation was registered under the Societies' Registration Act, 1860. Likewise, all Associations which constitute the Confederation are similarly registered individually. It is further stated that Air Force Association and Indian Ex-Services League are even recognized by the Ministry of Defence, Union of India. It, therefore, cannot be said that the petitioner- Confederation is not registered and the petition filed is not maintainable. In view of the fact that some of the Associations have been recognized even by the Ministry of Defence, the deponent ought not to have raised the objection regarding maintainability of the petition without ascertaining full facts and particulars. We leave the matter there holding the petition maintainable.



15. We are also satisfied that the contention of the respondent is even otherwise not tenable at law. A similar point came up before a Constitution Bench of this Court in the well known decision in *D.S. Nakara v. Union of India: (1983) ILLJ 104SC*. There also, one of the petitioners was a Society registered under the Societies' Registration Act, 1860. It approached this Court/or ventilating grievances of a large number of old and infirm retirees who were individually unable to approach a court of law for redressal of their grievances. This Court held locus standi of the Society 'unquestionable'. In the present case, apart from the fact that a larger public issue and cause is involved, even individually, all Associations are registered Associations of ex-servicemen. The petitioner-Confederation representing those Associations which is also registered, can certainly approach this Court by invoking the provisions of Part III of the Constitution. We, therefore, reject the preliminary objection raised by the respondents and hold that the petitioner-Confederation has locus standi to file the petition. In our view, however, maintainability of petition and justiciability of issues raised therein are two different, distinct and independent matters and one cannot be mixed or inter-linked with the other."

6.29.11(a) Further, in ***Jasbhai Motibhai Desai v. Roshan Kumar, Haji Bashir Ahmed***, reported in (1976) 1 SCC 671, the Hon'ble Supreme Court described the expression 'aggrieved person' as follows:

"13. This takes us to the further question: Who is an "aggrieved person" and what are the qualifications requisite for such a status? The expression "aggrieved person" denotes an elastic, and to an extent, an elusive concept. It cannot be confined within the bounds of a rigid, exact and comprehensive definition. At best, its features can be described in a broad tentative manner. Its scope and meaning depends on diverse, variable factors such as the content and intent of the statute of which contravention is alleged, the specific circumstances of the case, the nature and extent of the petitioner's interest, and the nature and extent of the prejudice or injury suffered by him. English courts have sometimes put a restricted and sometimes a wide construction on the expression "aggrieved person". However, some general tests have been devised to ascertain whether an applicant is eligible for this category so as to have the necessary locus standi or "standing" to invoke certiorari jurisdiction."

6.29.11(b) Further, in ***Ghulam Qadir v. Special Tribunal***,



reported in (2002) 1 SCC 33, in para 38 thereof, the Hon'ble Supreme Court has held as under:

"36.....The orthodox rule of interpretation regarding the locus standi of a person to reach the court has undergone a sea change with the development of constitutional law in our country and the constitutional courts have been adopting a liberal approach in dealing with the cases or dislodging the claim of a litigant merely on hyper technical grounds. If a person approaching the court can satisfy that the impugned action is likely to adversely affect his right which is shown to be having source in some statutory provision, the petition filed by such a person cannot be rejected on the ground of his having not the locus standi. In other words, if the person is found to be not merely a stranger having no right whatsoever to any post or property, he cannot be non-suited on the ground of his not having the locus standi."

6.29.12 At this stage, learned Senior Counsel submitted that the DANICS Association who is Applicant No.1 in OA No.4107/2023 is registered under the Societies Registration Act, 1860 on 13.12.1993 in Delhi and having Registration No.25134/1993 consisting of its members who are DANICS officers. The DANICS Association has been taking up the issues affecting/impacting DANICS officers with MHA and GNCTD from time to time. The various representations of the DANICS Association were forwarded by the MHA to the GNCTD for due consideration from time to time including at the stage of Draft Recruitment Rules. In fact, meetings were also organized by MHA with GNCTD to redress the grievances of the DANICS officers. The DANICS Association made representations on behalf of the entire DANICS Cadre before the Kutty Committee as well as SAHAI



Committee. The DANICS Association also duly participated in the Cadre Review Exercise of DANICS Cadre from time to time and all the representations have been entertained by the MHA from time to time. Thus, the DANICS Association has been taking up the cause of the entire DANICS Cadre. The issue involved herein affects the entire DANICS cadre structure and therefore, rightly being agitated by the DANICS Association along with DANICS officers. Further, OA No. 3327/2018 and WP(C) No.11537/2018 were instituted by the DASS officers Association on behalf of the DASS officers before this Tribunal as well as Hon'ble High Court and, therefore, they are estopped from taking objection as to locus of the applicants. Learned Senior counsel also submitted that in OA No.4107/2023, the DASS Officers Association moved application for impleadment, as respondent No.9, which was allowed and, therefore, atone hand the DASS officers Association themselves being represented by Association cannot take such contradictory stands before this Tribunal. Learned Senior Counsel also submitted that as per the principles of legitimate expectations as enumerated by the Hon'ble Supreme Court in ***Punjab Communications ltd Vs. UOI***, reported in (1999) 4 SCC 727, para 31 thereof, provides as under:

"31.....This Court held that the Societies were entitled to a 'legitimate expectation' that the past consistent practice in the matter of allotment, will be followed even if there was no right in private law for such allotment. The authority was not entitled to defeat the legitimate expectation of the societies....."



The legitimate expectation of DANICS for inclusion of Deputy Collector equivalent posts like Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director etc. in DANICS cadre is based on the fact that these have always been part of DANICS Cadre. Reliance is also made on the Doctrine of past practice as noted above in the matter of ***N. Suresh Nathan & Anr Vs. UOI*** (supra) and ***State of UP Vs. Santosh Kumar Mishra and Anr.***, reported in (2010) 9 SCC 52. Thus, as per the consistent past practice, posts equivalent to Deputy Collector—such as Sales Tax Officer, Assistant Commissioner, Deputy Secretary, Deputy Director, etc.—have always formed part of the DANICS cadre and cannot be diverted to the DASS cadre to the detriment of the DANICS cadre. The following facts establish the locus standi of the applicants in the present case:

- (i) The Sahai Committee Report, which recommended grant of higher pay scale to DASS and the creation of a Group 'A' cadre therein, was formally circulated to the applicants for seeking their comments and suggestions.
- (ii) The Hon'ble Lieutenant Governor of Delhi directed the Services Department to forward the representations submitted by the applicants, along with the Sahai Committee Report, to the Ministry of Home Affairs (MHA) for taking a holistic decision.



(iii) The No Objection Certificate (NoC) issued by the MHA was expressly conditional, inter alia, stipulating that the DANICS cadre should not be adversely affected.

(iv) The posts in question have always been part of the DANICS cadre and continue to be manned by DANICS officers even as on date.

In view of the above, it is evident that the applicants have a clear locus to challenge the impugned notification, as the same results in divesting DANICS of posts historically identified for it since 1961 and disrupts the well-established civil service hierarchy of All India Services – State Civil Services – State Subordinate Services, as recognized since the Aitchison Public Service Commission Report, insofar as its application to Delhi is concerned.

6.29.13 Learned Senior Counsel for the applicants further submitted that policy decisions are amenable to judicial review where they are contrary to law, arbitrary, or suffer from non-application of mind. Reliance is placed on the judgment of the Hon'ble Supreme Court in ***Devesh Sharma v. Union of India***, (2023) 18 SCC 339, wherein it has been held that although courts ordinarily refrain from interfering with policy decisions, such restraint does not apply where the decision is arbitrary, irrational, or violative of legal principles. Judicial review is warranted in cases involving illegality, irrationality, or procedural impropriety. Reliance is also placed on ***Subodh Kumar Singh Rathour v.***



Chief Executive Officer, (2024) 15 SCC 461, particularly paragraphs 44 and 68, wherein the Hon'ble Supreme Court reiterated that judicial review is concerned with the decision-making process and not the merits of the decision itself. It was emphasized that administrative decisions can be interfered with on grounds of illegality, irrationality, procedural impropriety, bias, mala fides, or where the decision is one that no reasonable authority would have taken. On the issue of file notings, reliance is placed on paragraphs 83 to 87 of the said judgment, wherein it has been categorically held that once a decision has been formalized, the internal file notings and deliberations forming part of the decision-making process can be examined by courts for the purpose of judicial review. While such notings cannot confer independent rights unless crystallized into a formal decision, they are nevertheless relevant to assess whether the decision-making process satisfies the requirements of Article 14 of the Constitution. In light of the above, the reliance placed by the applicants on communications exchanged between the MHA and GNCTD is legally tenable, and the objection raised by GNCTD against consideration of such material is unsustainable. Further reliance is placed on **Prem Chandra Agarwal v. U.P. Financial Corporation**, (2009) 11 SCC 479, wherein it has been held that interim orders merge into the final order and cease to exist upon final adjudication. Similarly, in **State of U.P. v. Prem Chopra**, (2024) 12 SCC 426, the Hon'ble Supreme Court clarified that a stay of operation of an order does not obliterate the order



itself; it merely renders it inoperative during the pendency of proceedings. Upon dismissal of the proceedings, the interim order merges with the final order and ceases to exist, and parties must be restored to the position they would have occupied but for the interim order, unless otherwise directed. It is further submitted that the respondents have placed reliance on the order passed by the Hon'ble High Court of Delhi in W.P.(C) No. 11537/2018 filed by the DASS Association. However, in the said case, the High Court did not adjudicate the matter on merits and merely directed the MHA to take an appropriate decision.

6.30 Learned Senior Counsel also submitted that pursuant to the proposal dated 07.08.2023 submitted by GNCTD, the MHA issued only a limited and conditional NoC dated 24.08.2023 clearly stipulating that:

- (i) The proposal should not adversely impact DANICS posts;
- (ii) The nomenclature should not overlap with IAS/DANICS designations; and
- (iii) Mandatory consultation with DoE, DoP&T, and DoLA, along with approval of the competent authority at every stage, must be ensured.

6.31 It is contended that the said NoC does not amount to unconditional approval and that the stipulated conditions have not been complied with by GNCTD. The original proposal pertained to



ex-cadre posts; however, no NoC was granted for diversion of ex-cadre DANICS posts. The approval was confined to non-IAS/non-DANICS posts. Despite the explicit condition that DANICS should not be affected, the impugned action results in diversion of ex-cadre posts identified for DANICS during the cadre review exercise initiated in 2013. Further, the nomenclature adopted overlaps with existing DANICS designations, in violation of the stipulated conditions. It is also submitted that mandatory approvals at each stage have not been obtained, namely:

- (a) Introduction of Level-11 pay scale in DASS, which requires approval of the Department of Expenditure;
- (b) Creation of a Group 'A' cadre in DASS, which is subject to directions of the Government of India; and
- (c) Amendment of DASS Rules, which ought to comply with DoP&T OMs dated 13.10.2015 and 18.07.2001.

6.32 It is further contended that, post the GNCTD (Amendment) Act, 2023, the Hon'ble Lieutenant Governor lacks independent authority to amend Recruitment Rules without adherence to the prescribed framework. Attention is also invited to the letter dated 07.04.2025 issued by MHA to GNCTD, which clearly records non-compliance of the stipulated conditions. It is further submitted that this Tribunal, in O.A. No. 2770/2023, vide order dated 03.07.2024, directed that the cadre review of DANICS be completed "positively"



within eight weeks, in terms of GNCTD's own letter dated 23.08.2013 [Pg. 92], wherein ex-cadre posts were identified for encadrement into DANICS [**Pg. 521, JC-I**]. However, instead of complying with the said direction, GNCTD has utilized the very same pool of posts to create Senior Scale GNCTDSS under DASS, thereby frustrating the directions of this Tribunal and defeating the purpose of the pending cadre review. It is submitted that contempt proceedings have already been initiated by the applicants, which are presently pending. Vide order dated 27.05.2025 in C.P. No. 692/2024 in O.A. No. 2770/2023, further time was granted for compliance; however, the process remains incomplete due to non-cooperation on the part of GNCTD. The Status Report dated 05.11.2024 filed by MHA indicates that comments from all other stakeholders have been received, except from GNCTD.

CONTENTIONS OF THE UPSC

7. Shri R.V. Sinha, learned counsel appearing for the UPSC, submitted, with reference to the short reply filed, that the UPSC is a constitutional advisory body established under Article 315 of the Constitution which is entrusted with the obligation to ensure that selections for regular appointments are conducted in accordance with law and established procedures. Learned counsel contended that the present matter pertains to certain policy decisions/proposals, in respect of which representations were submitted to the Chief Secretary, Delhi, and the UPSC has no adjudicatory or decision-making role.



7.1 Learned counsel further submitted that, without duly examining the representations dated 01.06.2023 and 12.06.2023 submitted by the DANICS Association, the GNCTD forwarded a proposal to the Ministry of Home Affairs (MHA) for abolition of 221 DANICS posts/DANICS equivalent posts for the purpose of creation/encadrement of an equal number of Group 'A' posts in the DASS cadre. Learned counsel further pointed out that the MHA has conveyed its "No Objection" (NoC) for such abolition of DANICS/DANICS equivalent posts in Delhi for creation of Group 'A' posts in the DASS cadre.

7.2 Learned counsel also contended that the averment of the applicants is that certain DASS officials attempted to create an artificial situation of stagnation by deliberately not accepting promotions for prolonged periods, with a view to pressurizing the competent authority to create separate Group 'A' posts within the DASS cadre itself, outside the DANICS framework. Such conduct was merely a device to avoid outstation postings in places such as Andaman & Nicobar Islands, Lakshadweep, etc., and to secure continued postings within Delhi, often in the same departments where they had already served for long durations in DASS Grade-II and DASS Grade-I. According to the applicants, such an approach is contrary to the principles of fair, efficient, and transparent administration.

7.3 Learned counsel further submitted that the abolition of DANICS posts/DANICS equivalent posts and the corresponding creation/encadrement of Group 'A' posts in the DASS cadre is purely a matter of administrative policy, which falls outside the purview of the



UPSC. The Ministry of Home Affairs is the nodal authority in respect of DANICS posts in Delhi, and therefore, the UPSC has no role to play in the said process.

7.4 Lastly, learned counsel submitted that no specific action of the UPSC has been challenged in the present O.A., nor has any substantive relief been sought against it. Thus, in such circumstances, the impleadment of the UPSC is wholly unwarranted, and it would be just and proper that name of UPSC be deleted from the array of parties in the interest of justice.

CONTENTIONS OF THE PRIVATE RESPONDENT, I.E., DASS ASSOCIATION

8. Shri Arun Bhardwaj and Shri Kirtiman Singh, learned Senior Counsel appearing on behalf of the DASS Association, submitted that the DASS cadre was constituted in the year 1967 under the DASS Rules, 1967. Since its inception, no cadre restructuring had taken place, and the impugned notification dated 24.12.2024 is the first such exercise following the cadre restructuring order dated 10.11.2023.

8.1 It is submitted that the DASS Association had earlier approached this Tribunal by filing O.A. No. 3327/2018 seeking implementation of the Sahai Committee recommendations. However, the said O.A. was dismissed by this Tribunal on the ground that the matter fell within the domain of policy formulation. Aggrieved thereby, the DASS Association approached the Hon'ble High Court of Delhi by filing W.P. (C) No. 11537/2018, which was



dismissed as withdrawn on 01.11.2018. Subsequently, C.M. No. 52897/2018 was filed seeking modification of the order, wherein notice was issued by the Hon'ble High Court. The matter was listed on various dates, and on certain occasions, the Joint Secretary, MHA appeared before the Court. During the pendency of the said proceedings and pursuant to the directions of the Hon'ble High Court, posts were earmarked vide letter dated 07.08.2023. Thereafter, the matter was disposed of by the Hon'ble High Court vide order dated 11.08.2023. Subsequently, MHA granted a No Objection Certificate (NoC) on 24.08.2023, followed by issuance of the cadre restructuring order dated 10.11.2023. In the meantime, the GNCTD (Amendment) Act, 2023 came into force on 19.05.2023.

COMPETENCE OF THE HON'BLE Lt. GOVERNOR

8.2 Learned Senior Counsel submitted that the applicants have contended that by virtue of Sections 45 C and 45 K of the GNCTD (Amendment) Act, 2023, the Hon'ble Lt. Governor is not competent to issue the impugned notification. However, it is submitted that Rules dated 07.07.2025, framed under Sections 45 C and 45 K, contain a saving clause (Rule 12), which provides that all rules, notifications, orders, office memoranda, and proceedings issued or initiated prior to the commencement of the GNCTD (Amendment) Act, 2023 shall continue to remain in force unless amended.

Thus, it is contended that the Hon'ble Lieutenant Governor is fully competent to create Group 'A' posts within the DASS cadre. It



is further submitted that the restructuring proposal had already been approved by the Hon'ble Lieutenant Governor in the year 2018 and recorded in the order dated 22.04.2022.

INTERPRETATION OF "CENTRAL GOVERNMENT"

8.3 Learned Senior Counsel drew attention to Section 8 (b) (iii) of the General Clauses Act, 1897, to contend that the term "Central Government," in relation to Union Territories, includes the Lieutenant Governor. Since the GNCTD Act, 1991 does not define "Central Government," the definition under the General Clauses Act would apply. Accordingly, wherever the term "Central Government" is used in the impugned notification dated 24.12.2024 or in Section 45 C of the GNCTD (Amendment) Act, 2023, it must be interpreted to mean the Hon'ble Lt. Governor. Therefore, the impugned notification, having been issued by the Hon'ble Lieutenant Governor in consultation with UPSC, is stated to be issued by a competent authority.

POWER UNDER ARTICLE 309 OF THE CONSTITUTION

8.4 Learned Senior Counsel placed reliance on the proviso to Article 309 of the Constitution of India and the following judgments:

(a) ***B.S. Vadera v. Union of India***, reported in 1968 SCC OnLine SC 39 [5J] (Para 22-24); (b) ***B.S. Yadav v. State of Haryana***, reported in 1980 Supp SCC 524 [5J] (Para 44-47); (c) ***V.K. Sood v. Secy., Civil Aviation***, reported in 1993 AIR 2285 (Para 4); and



(d) ***S.S. Bola V. B.D. Sardana***, reported in (1997) 8 sec 522 [3J] **(Para 28)**; and (e) ***D.R. Yadav v. R.K. Singh***, reported in (2003) 1 SCC 110 [2J] **(Para 21-23)**.

8.5 Learned Senior counsel also submitted that the enactment of conditions of service, Proviso to Article 309 recognizes 2 sources power, i.e., 1. President or a person appointed by the President; and 2. Governor or a person appointed by the Governor. The enactments by both the repositories of power **SHALL HAVE EFFECT**. However, in the case of repugnancy between such enactments, the provisions made by the appropriate State Legislature shall prevail. However, in the present cases, there is no repugnancy, because the State Legislature/GNCTD has not exercised their power to make rules on conditions of service/creation of posts and hence, to that extent, the rules made by the delegatee of the President, i.e., Hon'ble Lt. Governor shall continue to prevail. For facility of convenience, he referred to the Proviso to Article 309 which provides that "*and any rules so made shall have effect subject to the provisions of any such Act,*" which must receive their due weight. Thus, under the said Proviso, the President has full power to make rules, regulating the recruitment, and conditions of service of persons. Further, under the Proviso, such person, as may be directed by the President, can also make rules, regulating the recruitment and conditions of service, of persons. The rules so made, either by the President, or such person, as the President may direct, will have currency, until provision, in that behalf, is made by or under an Act, of



the appropriate Legislature, under Article 309. The clear and unambiguous expressions, used in the Constitution, must be given their full and unrestricted meaning, unless hedged-in, by any limitations. Meaning thereby, **if the appropriate legislature has passed an Act, under Article 309, the rules, framed under the proviso, will have effect, subject to that Act; but, in the absence of any Act, of the appropriate legislature, on the matter, the rules, made by the President or Governor, or by such person as he may direct, are to have full effect, both prospectively, and, retrospectively. In the absence of the rules, the rules made by the President or by such person as he may direct are to have full effect.**

- a) When the State Legislature, does not exercise the power, the Constitution furnishes by its provisions ample evidence that it abhors a vacuum.
- b) The Governor thus steps in when the legislature does not act. The power exercised by the Governor under the proviso is thus a power which the legislature is competent to exercise but has in fact not yet exercised. It partakes of the characteristics of the legislative, not executive, power. It is legislative power.
- c) Under Article 213, the Constitution substitutes for the legislature because the legislature is in recess. Under the proviso to Article 309, the Constitution substitutes for the legislature because the legislature has not yet exercised its power to pass an appropriate law on the subject.
- d) For instance, the legislatures of Punjab and Haryana not having passed an Act regulating seniority of the respective



State judicial officers, the **Governors of the two States have the power to frame rules for that purpose under the proviso to Article 309 of the Constitution.**

- e) The Rules made by the Governor under the proviso to Article 309 shall hold the field until provision in that behalf is made by an Act of the legislature of the State.
- f) If a statute or rules made thereunder was/were already operating in the field, the general rules made under the proviso to Article 309 would not apply to the services created thereunder.
- g) In the event two conflicting rules are operating in the same field, the doctrine of *generalia specialibus non derogant* shall apply.
- h) **This is a case which reflects non-exercise of the power vested in the State Legislature and therefore, the rules made by the delgatee of the President, i.e., Lt. Governor shall prevail.**

8.6 Even otherwise, under 45 C, it is the Central Government which has to make rules, which under Section 8(b)(iii), means Lt. Governor. Therefore, looking from both the angles, it can be safely concluded that the impugned notification has been issued by the Lt. Governor who is competent under the proviso to rule 309/ being a delgatee of the President and is also competent under the amended rules 45 C etc. and under the GNCTD Act 1991, to frame rules being covered under definitions of Central Government under the General Clauses Act.

DELEGATION OF POWERS



8.7 First Gazette Notification delegating powers is 13.07.1959. Thereafter, the Notification of 24.09.1968. Circular dated 01.01.1997 delegating powers to the Hon'ble L.G., subject reads, "*Delegation of powers for creation of posts to Lt. Governor, Delhi*". After coming into effect of the GNCTD (Amendment) Act on 19.05.2023, **Office Memorandum dated 05.01.2024 extending the delegation again relies upon circular of 01.01.1997 delegating powers to the Lt. Governor for creation of posts.** Exercising the said powers, various Group 'A' posts in different cadres/departments of GNCTD have been created; and different cadres/services have been reviewed and restructured by Hon'ble LG from time to time (Compilation-II) and the same has never been disputed/challenged.

NON-APPLICABILITY OF O.M. DATED 30.09.2022

8.8 The Respondent DASS Association is a Central Civil Service Group 'B'. The aforesaid O.M. is applicable on Central Group 'A' Services/ cadres and mentions the list of Central Group 'A' Services/ cadres to be reviewed and the said is Annexure - IV to the said O.M. DASS is not a part of the said list. Para. 4.7 goes on to mention that the said procedure would be applicable in case of the formation of a new service/Group 'A' cadre. It is submitted that neither a new service nor cadre has been formed. Only Group 'A' posts have been created within the cadre, which is a Group-'B' Central Civil Service and hence not covered by the said O.M. The applicants relied upon Para 5.2(IX), however, the same is also not applicable as it mentions "*should not result in creation of posts in*



Central Group 'A' services". It is submitted that Group-A post in question in the present case is not resulting in any creation of posts in "Central Group 'A' services".

8.9 It is pertinent to mention that O.M. dated 20.11.2009 clearly mentions attributes of Organized Group 'A' Central Services. None of the same is applicable on DASS. Hence, since DASS is not a Central Group A Civil Service, the O.M. dated 30.09.2022 is not applicable on DASS cadre.

NO LOCUS STANDI OF APPLICANTS

8.10 It is submitted that applicants may have a right to cadre review but have no right to dictate which post should be added to their cadre.

Admittedly, none of the Applicants or the association is personally affected by the creation or abolition of posts in a different cadre, nor is there any personal grievance against the addition of the post in question. Further, the present O.A.s are bad in law for misjoinder in as much as the applicants belong to different grades of service and hence, cannot have a common grievance against the creation of posts in the DASS cadre, which is solely in executive domain. The answering respondent further respectfully submits that during the course of arguments, it was contended on behalf of the Applicants that since the posts in question were proposed to be included as part of the cadre review of DANICS, as such the Applicants herein have locus to maintain the present O.A. In this regard, it is submitted that while it may be open for a given set of applicants to setup a case of cadre review, that in itself does not confer upon the said applicants a right to dictate which posts must be added to



that cadre, as is well settled (which in this case has been considered by the competent authority) all such questions are to be considered by the competent cadre controlling authority and as such no applicant can claim any entitlement for inclusion of any post as a part of their cadre.

The Hon'ble Supreme Court in ***P.U. Joshi and Ors. vs. Accountant General, Ahmedabad and ors.***, reported in (2003) 2 SCC 632, held as under:

"10. We have carefully considered the submissions made on behalf of both parties. Questions relating to the constitution, pattern, nomenclature of posts, cadres, categories, their creation/abolition, prescription of qualifications and other conditions of service including avenues of promotions and criteria to be fulfilled for such promotions pertain to the field of policy is within the exclusive discretion and jurisdiction of the State, subject, of course, to the limitations or restrictions envisaged in the Constitution of India and it is not for the statutory tribunals, at any rate, to direct the Government to have a particular method of recruitment or eligibility criteria or avenues of promotion or impose itself by substituting its views for that of the State. Similarly, it is well open and within the competency of the State to change the rules relating to a service and alter or amend and vary by addition/subtraction the qualifications, eligibility criteria and other conditions of service including avenues of promotion, from time to time, as the administrative exigencies may need or necessitate. Likewise, the State by appropriate rules is entitled to amalgamate departments or bifurcate departments into more and constitute different categories of posts or cadres by undertaking further classification, bifurcation or amalgamation as well as reconstitute and restructure the pattern and cadres/categories of service, as may be required from time to time by abolishing the existing cadres/posts and creating new cadres/posts. There is no right in any employee of the State to claim that rules governing conditions of his service should be forever the same as the one when he entered service for all purposes and except for ensuring or safeguarding rights or benefits already earned, acquired or accrued at a particular point of time, a government servant has no right to challenge the authority of the State to amend, alter and bring into force new rules relating to even an existing service."

8.11 In ***Director General Ordinance Factories Employees' Association v. Union of India and Director General***



Ordinance Factories, reported in 1968 SCC OnLine Cal 2, the Hon'ble High Court of Calcutta observed that:

"15. On this point also, the Petition must fail because if any stenographer is given a higher post in the Clerical line, it is only a particular Assistant who is thereby deprived of his promotion that will be individually affected and shall be competent to bring a petition under Article 226. The collective existence or interests of the association as such will not thereby be affected.

16. On the merits also, the Petitioner has little to stand upon excepting certain statements in a Government of India Manual, which has no statutory force. The test in the instant case is not the administrative practice which may be in existence for any length of time but the legal right, if any, of the Clerks to oust the Stenographers from their cadre. The Petitioner has, however, failed to prove the existence of separate cadres for Clerks and Stenographers, in rebuttal of the statement in paragraph 4 of the counter-affidavit that both clerks and stenographers belong to Class 111 ministerial service. The Pay Commissions observations as to the difference in the nature of their work have no legal force but only matters for consideration of the administrative authorities. The Petitioner may carry on its activities at that level so long as they are not convinced, but this Court cannot interfere under Article 226 unless some legal right is infringed. So long as such legal right is not established there is no question of a violation of Article 14 or 16 either."

8.12 Further, Hon'ble High Court of Kerala in **All India BSNL Pensioners Welfare Association & Anr. v. Union of India & Ors.**, OP(CAT) No. 60/2020 observed:

"It is settled law that the association cannot espouse the grievance of the major persons."

8.13 It is submitted that the Applicants have placed heavy reliance on the MHA letter dated 07.04.2025 to show deviation from procedure. It is respectfully submitted that the said letter is inter-departmental communication with GNCTD, to which GNCTD has given reply dated 14.08.2025. Thereafter, no such queries have been raised by the MHA and the MHA in its written submissions dated 11.11.2025 filed before the Tribunal reiterated that there has been no deviation of procedure.



Further, GNCTD vide letter dated 17.03.2025 has also given their pointwise reply to the representations by DANICS' officers. Lastly, learned Senior counsel submitted that these matters deserves to be dismissed by this Tribunal.

CONTENTIONS OF GOVT. OF NCT OF DELHI

9. Learned counsel appearing for Govt. of NCT of Delhi submitted that Provincial Civil Service (PCS) and DANICS (Delhi, Andaman & Nicobar Islands Civil Service) are feeder cadres for IAS (Indian Administrative Service), there is no structured hierarchy among them as per the government's framework. Each of these services is governed by its own set of rules and regulations, which define their structure, promotion criteria, and service conditions. It is further submitted that while PCS and DANICS are considered feeder cadres for the IAS, this does not imply that there is a hierarchical system where these services are ranked below IAS in an administrative structure dictated by the Government. A feeder cadre only refers to the fact that officers from these services may be inducted into IAS through promotion based on eligibility criteria, performance, and available vacancies. Each civil service in India functions under its respective set of rules, regulations, and service conditions, which are distinct from one another. The relevant rules governing different services include:

- **IAS Officers:** Governed by the All-India Services Act, 1951, along with rules such as the Indian Administrative Service (Recruitment) Rules, 1954 and the Indian Administrative Service (Cadre) Rules, 1954.



- **DANICS Officers:** Governed by the Delhi, Andaman & Nicobar Islands Civil Service (DANICS) Rules, 2003, which regulate recruitment, promotion, and service conditions.
- **PCS Officers:** Each state's PCS officers are governed by their respective state's rules, such as the Uttar Pradesh PCS Rules, Punjab Civil Services Rules, etc.

9.1 It is also submitted that there is no common service rule for IAS, PCS, and DANICS. Unlike IAS, which is an All-India Service governed by central laws, PCS and DANICS are governed separately. It is also submitted that neither GNCTDSS nor DANICS is a State Civil Service; both are Central Services. It is submitted that DASS is an Organized Central Civil Service created in 1967, and despite several orders of GOI regarding cadre review, it was never reviewed for 55 years.

DANICS IS NOT A STATE CIVIL SERVICE

9.2 Learned counsel further submitted that DANICS is also a Subordinate Service to support smooth functioning of administrative machinery. It is relevant to mention here that Government of India, Ministry of Home Affairs vide Notification No. S.O. 1368 (E) date 21.05.2015 superseding the notification dated 24.09.1998 notified as under:

"And whereas sub-clause (a) of clause (3) of article 239AA also qualifies the matters enumerated in the State List or in the Concurrent List in so far as any such matter is applicable to Union Territories. Under this provision, a reference may be made to Entry 41 of the State List which deals with the State Public Services, State Public Service Commission which do not exist in the National Capital Territory of Delhi.

Further, the Union Territories Cadre consisting of Indian Administrative Service and Indian Police Service personnel is



*common to Union Territories of Delhi, Chandigarh, Andaman and Nicobar Islands, Lakshadweep, Daman and Diu, Dadra and Nagar Haveli, Puducherry and States of Arunachal Pradesh, Goa and Mizoram which is administered by the Central Government through the Ministry of Home Affairs; and **similarly DANICS and DANIPS are common services catering to the requirement of the Union Territories of Daman & Diu, Dadra Nagar Haveli, Andaman and Nicobar Islands, Lakshadweep including the National Capital Territory of Delhi which is also administered by the Central Government through the Ministry of Home Affairs. As such, it is clear that the National Capital Territory of Delhi does not have its own State Public Services. Thus, 'Services' will fall within this category.***"

It has amply been clarified by the above notification that National Capital Territory of Delhi does not have its own State Public Service and, therefore, even DANICS cannot be called State Civil Service. Rather, it is a Group-B Gazetted Service for which recruitment is made through UPSC.

DANICS CADRE RESTRUCTURE

9.3 It is also important to highlight that DANICS was created in 1971-72 with two grades, namely Entry grade and Senior/Selection grade. Two higher grades were created in DANICS in 2003. These higher grades are JAG II (carrying grade pay of Rs.7600/-) and JAG I (carrying grade pay of Rs.8700/-). DANICS is feeder of IAS. Before induction in IAS, every DANICS officers gets higher grade pays than that of Entry grade IAS, which is Rs.5400/-. Therefore, it is beyond comparison as to how creation of grade pays in DASS, higher than Entry Grade DANICS would adversely affect DANICS, whereas higher Grade pays in DANICS are not affecting IAS. Further DANICS, in its present form, was created in 1971-72 with two grades, namely Entry grade and Senior/Selection grade. To address the stagnation issue in DANICS Cadre, 02 new higher grades



were granted to the DANICS (i.e. JAG II (carrying grade pay of Rs.7600/- and JAG I carrying grade pay of 8700/- with retrospective effect from 1986 & 1996 respectively), before induction into IAS. The career progression of DANICS is as under:

- i) Entry Grade of DANICS in Level 8 (pre-revised Grade Pay 4800/-) and Non-Function Scale in Level 10 (pre-revised Grade Pay Rs. 5400) after 04 years of Regular Service. Designated as Dy. Secretary/CDM etc.;
- ii) Promotion to Selection Scale of DANICS in pay level 11 (pre-revised Rs. 6600/-) on completion of 08 years' service, through DPC conducted by the UPSC. Designated as Joint Secretary/ADM etc. in Delhi;
- iii) Promoted to Junior Administrative Grade-II of DANICS in pay level 12 (pre-revised Rs. 7600/-) on completion of 05 years' service in Selection Grade, through DPC conducted by the UPSC. Designated as Addl. Secretary/Deputy Commissioner in Delhi;
- iv) Promoted to Junior Administrative Grade-I of DANICS in pay level 13 (pre-revised Rs. 8700/-) on completion of 05 years' service in JAG-II Grade, through DPC conducted by the UPSC. Designated as Special Secretary/Deputy Commissioner in Delhi;
- v) Further, at the time of their induction in IAS, DANICS Officers are granted benefit of past service in seniority, for a maximum period of 09 years;



9.4 In comparison, the Grade-I (DASS), who are similarly placed with Entry Grade of DANICS, have been proposed only 01 promotional scale viz Rs. 6600/-, within DASS Cadre.

9.5 The applicants are expressing apprehension that creation of GNCTDSS Group "A" service will negatively impact their promotional prospects. However, their argument appears inconsistent, as they, along with their association, are simultaneously advocating for a cadre restructuring of their own service. It is reiterated that the Respondents have already clarified that the posts now designated for GNCTDSS Group "A" officers are neither IAS nor DANICS posts. These positions function independently and do not affect the promotional avenues of the applicants. Therefore, the concerns raised by the applicants are misplaced, speculative, and unsupported by facts. The applicants are merely expressing apprehension that DASS officers may seek induction into IAS. However, they did not raise any objections when other Group 'B' services were granted promotion to Group 'A' status. Their selective opposition indicates an inconsistent stance on the matter.

CREATION OF GROUP "A" SERVICE IN GNCTD

9.6 There is no bar on the Hon'ble Lieutenant Governor, GNCTD, from creating Group 'A' services. In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, read with the Government of India, Ministry of Home Affairs Notification dated 13th July 1959, and all other enabling provisions including the Notification dated 1st January 1997, the Hon'ble Lt. Governor is duly empowered to



create posts and services under Groups ‘A’, ‘B’, ‘C’ and ‘D’ (**Annexure B**). For example, the Hon'ble Lt. Governor, GNCTD, has created various Group ‘A’ services in departments such as Health, Prison, Accounts, Education, Engineering, and the Delhi Stenographers’ Service, among others. The details of which is given in (Annexure C (Colly)). The submissions of the applicants that section 45 (C) of the GNCTD Act-2023 restrict the power of the Hon'ble Lt. G to make rules qua the service matters of GNCTD is misplaced in the light of the section Rule - 12.

CONCERN REGARDING DUAL CHANNEL OF PROMOTION

9.7 The applicants have contended that officers of the DASS Cadre would have a dual channel for promotion, as they may opt for induction into DANICS or choose to remain within their own cadre under the Group ‘A’ service, thereby allegedly reducing the pool of feeder officers for induction into DANICS. However, while making this assertion, the applicants have failed to disclose that they themselves enjoy a similar option — to either continue in their own cadre or seek induction into the IAS. (**Annexure D**) In fact, services, non-State Civil Services (non-SCS) have always had the option to continue within their own cadre or to apply for induction into the IAS under the provisions of the Indian Administrative Service (Appointment by Selection) Regulations, 1997. (**Annexure E**)

REPORT OF THE PUBLIC SERVICE COMMISSION OF 1886—
87



9.8 The applicants' reliance on the Report of the Public Service Commission of 1886—87 (under the Chairmanship of C.U Aitchison, though wrongly mentioned as royal commission) is misplaced and difficult to comprehend, as the primary aim and objective of the said Commission was *"to devise a scheme which may reasonably be hoped to possess the necessary elements of finality, and to do full justice to the claims of the natives of India to higher and more extensive employment in the public service."* The recommendation of Aitchison Commission are as under (which has no bearing on the present case)

- a) The two-tier civil service classification of covenanted and uncovenanted should be replaced by a three tier classification of imperial, provincial, and subordinate civil services.
- b) The minimum age for entering the civil service should be 23.
- c) The statutory civil service recruitment system should be abolished.
- d) The competitive exam should not be held in both England and India at the same time.
- e) The promotion of members of provincial civil service should fill a certain percentage of imperial civil service posts.

While undertaking an exercise of cadre review or restructuring, no Government can be expected to rely upon a report that reflects a colonial mindset or is rooted in policies inconsistent with the principles of a democratic and independent administration.

POLICY DECISION



9.9 It is a well settled principle of law that the creation of posts is a matter of policy and falls exclusively within the domain of the executive authority. The power to create or abolish posts, determine their number, prescribe qualifications, and define the terms and conditions of service is an inherent function of the government, guided by administrative exigencies, financial considerations, and the overall needs of public service. Courts and tribunals have consistently held that such decisions are essentially matters of policy and are not ordinarily open to judicial interference unless shown to be arbitrary, mala fide, or in violation of statutory or constitutional provisions. The judiciary refrains from substituting its views for that of the competent authority in matters relating to administrative discretion and organizational structuring. Accordingly, the decision of the Government to create posts or constitute a new service, such as the GNCTDSS Group 'A' Service, squarely falls within its executive prerogative and cannot be questioned merely on speculative grounds or perceived apprehensions of affected individuals as held by the Hon'ble Supreme Court in ***P.U. Joshi vs. Accountant General*** (supra).

9.10 It is further submitted that the Hon'ble Lt. Governor is the competent authority in this regard. However, the applicants are attempting to draw an unwarranted comparison between DASS and DANICS services, as if only one service is exclusively capable of discharging the functions of the State. This comparison is not only misplaced but also ignores the broader administrative framework and



governance mechanisms in place. Furthermore, it is once again reiterated that the creation of Central Civil Service Group 'A' posts within the DASS/GNGTDSS cadre is a policy decision taken by the competent authority to enhance administrative efficiency and governance. Such decisions fall strictly within the domain of the executive and are made in response to service requirements and administrative exigencies. The applicants' objections in this regard hold no substantive merit. The DANICS Rules were amended in 2009, creating 309 posts in the DANICS cadre for Delhi segment. However, over the past 15 years, the actual deployment of DANICS officers in Delhi has consistently remained far below the sanctioned strength. For instance, in 2012, only 196 DANICS officers were posted in Delhi; in 2013, the number dropped to 174; in 2014 — 174; in 2015 — 175; in 2016 — 165; in 2017 — 151; in 2018 — 139; in 2019 — 123; and by October 2022, merely 96 officers were in place.

9.11 Due to the inadequate availability of DANICS officers from the Ministry of Home Affairs, the Government of NCT of Delhi was compelled to make alternative arrangements by assigning higher responsibilities and duties *or* an ad-hoc and emergent basis to officers of the Senior Grade-I (DASS). In several instances, even the posts earmarked for the DANICS cadre were manned by these ad-hoc promotee Grade-I (DASS) officers. It is pertinent to note that these ex-cadre posts have consistently been managed by officers from the DASS



cadre since their creation, and for over 12 years, no DANICS officers have ever been encadred against or deputed to these posts.

9.12 Learned counsel also submitted that the applicants' contention that there was a lack of consultation with the Department of Personnel & Training (DoPT), Department of Expenditure (Ministry of Finance), and the Department of Legal Affairs (Government of India). However, these claims are entirely baseless, incorrect, and misleading. The impugned notification was issued following all due administrative procedures and in compliance with the prescribed norms. The applicants have failed to establish any statutory violation or procedural impropriety, making their allegations untenable and legally unsustainable.

9.13 In view of the submissions made above, learned counsel submitted that the present OAs are liable to be dismissed.

10. We have heard learned counsel for the parties and perused the pleadings available on record.

ANALYSIS

11. It is not in dispute that the applicants are officers belonging to the DANICS, governed by the DANICS Rules, 2003, and were recruited through the Civil Services Examination conducted by UPSC. It is also admitted that DANICS is a Group 'B' civil service constituted for various Union Territories, and its cadre strength and service conditions are regulated by statutory rules framed by the competent authority under the Constitution. It is an undisputed position that 50% of the entry-level



posts in DANICS are filled by direct recruitment and the remaining 50% by promotion from feeder cadres, including officers of Delhi Administrative Subordinate Services (DASS) Grade-I, in terms of the applicable Recruitment Rules. It is further not in dispute that DASS is a subordinate service under GNCTD comprising multiple grades, and officers of DASS Grade-I become eligible for induction into DANICS upon completion of the prescribed qualifying service. It is admitted that the Government of NCT of Delhi issued a proposal/communication dated 07.08.2023 for abolition of certain posts and that the Ministry of Home Affairs conveyed its “No Objection” vide communication dated 24.08.2023 in respect thereof. It is also not in dispute that the applicants, through their Association, submitted representations raising objections to the aforesaid proposal and subsequent decision, which form the subject matter of challenge in the present OAs. It is further admitted that during the pendency of the matter, the GNCTDSS (Second Amendment) Rules, 2024 dated 24.12.2024 were notified, which have also been impugned in the connected O.A. No. 474/2025.

12. Having heard the parties and perusing the pleadings on record we find that the following issues arise for adjudication in these matters:

1. Whether the Hon’ble Lt. Governor of the Government of NCT of Delhi is competent in law to frame Recruitment Rules for the DASS cadre and create Group ‘A’ posts therein?



2. Whether the respondents' action in abolishing 221 posts meant for DANICS/IAS cadre and creating/encadring equivalent Group 'A' posts in DASS cadre is legally sustainable?
 3. Whether such action amounts to creation of a "parallel State Civil Service" in violation of constitutional scheme and statutory Recruitment Rules governing DANICS?
 4. Whether the impugned decisions dated 07.08.2023, 24.08.2023 and the GNCTDSS (Second Amendment) Rules, 2024 suffer from non-compliance of mandatory procedure prescribed by DoP&T and Department of Expenditure?
 5. Whether the impugned actions are vitiated for violation of principles of natural justice?
 6. Whether the applicants have established violation of Articles 14 and 16 of the Constitution of India?
13. So far issue 1., as noted in para 12 above, namely, *whether the Hon'ble Lt. Governor of the Government of NCT of Delhi is competent in law to frame Recruitment Rules for the DASS cadre and create Group 'A' posts therein*, we observe that mainly the challenge raised by the applicants in this OAs pertains to the competence of the Hon'ble Lt. Governor to frame the impugned Recruitment Rules, thereby creating Group 'A' posts in the DASS cadre i.e., GNCTDSS (Second Amendment) Rules, 2024 dated 24.12.2024.

13.1 We observe that the Ministry of Law and Justice (Legislature Department) notified the Government of National Capital Territory of



Delhi (Amendment) Act, 2023 vide Gazettee Notification dated 11.08.2023. The relevant clauses i.e., 45C and 45K thereof for the purpose of delving upon the said issue are reproduced as under:-

"45C. The Central Government may make rules to provide for any one or more of the following matters, in connection with the affairs of the Government of National Capital Territory of Delhi under this Part, namely:—

(a) the tenure of office, salaries and allowances, provident funds, pensions, gratuities, leave of absence and other conditions of service of officers and other employees appointed or posted;

(b) the powers, duties and functions of officers and other employees appointed or posted;

(c) the qualifications of candidates for appointment to the posts and the manner of selection for the appointments;

(d) transfer or posting of the officers and other employees posted;

(e) the procedure to be followed in imposing any penalty, suspension pending departmental inquiries before the imposition of such penalty and the authority by whom such suspension or penalty may be ordered; and the officer or authority to whom an appeal or revision shall lie;

(f) any other matter which is incidental to or necessary for the purpose of regulating the appointment and conditions of service of persons appointed to services and posts; and

(g) any other matter for which, in the opinion of the Central Government, provisions are to be made by rules.'

"45K. (1) The Central Government may, by notification published in the Official Gazette, make rules for carrying out the provisions of this Part.

(2) Every rule made by the Central Government under this Part shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rules or both Houses agree that the rules should not be made, the rules shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.'."



13.2 It is also apt to state that Ministry of Home Affairs vide gazetted notification dated 7.7.2025 in relation to exercise of the powers conferred by Section 45C and sub-section (1) of Section 45K of the Government of National Capital Territory of Delhi Act, 1991 (1 of 1992) and the said Rules notified the Government of National Capital Territory of Delhi (Conditions of Service of Officers and Other Employees) Rules, 2025. Rule 3 of the said Rules deals with Application of rules, which reads as under:-

"3. Application of rules.- The rules, including orders issued thereunder, by the Central Government or the Lieutenant Governor of Delhi, shall apply in case of, -

(i) the officers of All India Services, except Indian Police Service, who are serving in the affairs of the Government of National Capital Territory of Delhi and shall be, subject to the provisions of section 45H, governed by the rules made under the All-India Services Act, 1951 (61 of 1951), and any other rule, regulation, order, office order, circular, office memorandum, guideline, and such other matter made applicable to them by the Central Government or the Lieutenant Governor;

(ii) the officers of DANICS who are serving in the affairs of the Government of National Capital Territory of Delhi, and shall be, subject to the provisions of section 45H, governed by the National Capital Territory of Delhi, Andaman and Nicobar Islands, Lakshadweep, Daman and Diu and Dadra and Nagar Haveli (Civil Service) Rules, 2003, and any other rule, regulation, order, office order, circular, office memorandum, guideline, and such other matter made applicable to them by the Central Government or Lieutenant Governor;

Explanation- The words "State" or "State Government" or "State Government concerned" or "Constituent States", wherever referred to in any rule, regulation, order, office order, circular, office memorandum, guideline, and such other matter shall mean the Ministry of Home Affairs in accordance with the Government of India (Allocation of Business) Rules, 1961;

(iii) all other officers and employees shall be governed by following, namely: -

....

....



(l) any other rules, regulations, orders, office orders, circulars, office memorandums, guidelines, and such other matters issued by the Central Government for the Central Civil Services, which is not mentioned herein above:

Provided that subject to the provisions of this rule, the rules or regulations, orders, office orders, circulars, office memorandums, guidelines, and such other matters issued by the Lieutenant Governor for officers and other employees shall continue to be in force, until and unless amended in accordance with the provisions contained in the Act:..."

13.3 Further, Rule 12 of the said Rules contains a savings clause, which reads as under:-

" 12. Savings.- All recruitment rules, any other rules and any regulations, orders, office orders, circulars, office memorandums, guidelines, and such other matters relating to service matters and any proceedings thereunder, issued or initiated by the Central Government or the Lieutenant Governor or the appointing authority, which have been issued or initiated prior to the commencement of the Government of National Capital Territory of Delhi (Amendment) Act, 2023 (19 of 2023), shall continue to be in force, unless amended by the Central Government or the Lieutenant Governor or the appointing authority, as the case may be, subject to the provisions of section 45H."

13.4 Conjoint reading of above Sections 45C and 45K of the aforesaid enactment confer wide-ranging rule-making powers upon the "Central Government" in relation to recruitment, qualifications, service conditions, disciplinary matters, and all incidental aspects governing services under GNCTD. The language employed is broad and enabling, leaving no ambiguity that the legislative intent is to vest comprehensive control over service matters in the Central Government. However, the expression "Central Government" cannot be read in isolation. By virtue of Section 8(b)(iii) of the General Clauses Act, 1897, in its application to Union Territories, the term "Central Government" includes the Administrator, i.e., the Hon'ble Lt. Governor. In the absence of any



contrary definition in the GNCTD Act, 1991, the said interpretative provision squarely applies.

13.5 Consequently, any rule-making power conferred upon the “Central Government” under Sections 45C and 45K must, in the context of the National Capital Territory of Delhi, be construed as exercisable by the Hon’ble Lt. Governor. The impugned notification, having been issued by the Hon’ble Lt. Governor in consultation with the competent authorities, including UPSC, cannot therefore be faulted on the ground of lack of jurisdiction.

13.6 The position is further clarified by the Rules notified on 07.07.2025 under Sections 45C and 45K, namely the Government of National Capital Territory of Delhi (Conditions of Service of Officers and Other Employees) Rules, 2025. Rule 3 thereof expressly recognizes the applicability of rules issued by the Central Government or the Lieutenant Governor. More significantly, Rule 12 incorporates a comprehensive savings clause, preserving all recruitment rules, notifications, orders, and proceedings issued or initiated prior to the commencement of the 2023 Amendment Act. This provision clearly manifests the legislative intent to maintain continuity and validity of pre-existing exercises of power, unless specifically modified.

13.7 In the present case, the material on record demonstrates that the cadre restructuring proposal had its genesis much prior to the 2023 Amendment Act, having been approved at the level of the Hon’ble Lt. Governor as early as 2018 and reiterated in subsequent orders dated 22.04.2022. Therefore, the impugned action is not a fresh or isolated



exercise but a continuation of an already initiated administrative process, which stands protected by the saving clause.

13.8 Independently of the statutory framework, the competence of the Hon'ble Lt. Governor is traceable to the proviso to Article 309 of the Constitution of India. The said provision empowers the President, or any person authorized by him, to frame rules regulating recruitment and conditions of service.

13.9 It is a settled proposition of law, as consistently held by the Hon'ble Supreme Court in decisions such as ***B.S. Yadav v. State of Haryana*** (supra), ***V.K. Sood v. Secretary, Civil Aviation*** (supra), and ***S.S. Bola v. B.D. Sardana*** (supra), that the power under the proviso to Article 309 is legislative in character; Such rules continue to operate with full force until displaced by an enactment of the competent legislature; and the Constitutional scheme does not permit a vacuum in service jurisprudence. In the present case, it is an admitted position that no legislation has been enacted by the GNCTD legislature governing the service conditions or cadre structure of the DASS cadre. Consequently, the rules framed by the delegatee of the Hon'ble President validly occupy the field. The principle that rules framed under Article 309 operate with full force in the absence of legislation is further reiterated by the Hon'ble Supreme Court in ***D.R. Yadav v. R.K. Singh***, reported in 2003 (7) SCC 110. The relevant paras of the said judgment reads as under:-

"20. The 1991 Rules were framed by the Governor of Uttar Pradesh in exercise of his power conferred under the proviso appended to Article 309 of the Constitution of India. The proviso appended to Article 309 of the Constitution reads thus:



“Provided that it shall be competent for the President or such person as he may direct in the case of services and posts in connection with the affairs of the Union, and for the Governor of a State or such person as he may direct in the case of services and posts in connection with the affairs of the State, to make rules regulating the recruitment, and the conditions of service of persons appointed, to such services and posts until provision in that behalf is made by or under an Act of the appropriate legislature under this Article, and any rules so made shall have effect subject to the provisions of any such Act.”

21. *On a plain reading of the said provision, there cannot be any doubt whatsoever that rules framed thereunder would apply so long as a statute or statutory rules or any other subordinate legislation governing the conditions of service are not enacted or made or not otherwise operating in the field. In other words, rules made under the proviso to Article 309 of the Constitution are for a transitory period and the same would give way to the special rules once framed. However, if a statute or rules made thereunder was/were already operating in the field, the general rules made under the proviso to Article 309 would not apply to the services created thereunder.*

22. *The submission of Mr Dwivedi to the aforementioned extent appears to be correct.”*

13.10 In the present case, no enactment of the Legislative Assembly of Delhi occupying the field of recruitment or service conditions of the DASS cadre has been brought to notice. In the absence of any such law, the rules framed by the delegatee of the President, i.e., the Hon’ble Lt. Governor, must prevail and hold the field.

13.11 The respondents have also demonstrated a consistent chain of delegation of powers in favour of the Hon’ble Lt. Governor, commencing from notifications dated 13.07.1959 and 24.09.1968, followed by the circular dated 01.01.1997 specifically delegating powers for creation of posts, and its reiteration post the 2023 Amendment through Office Memorandum dated 05.01.2024.

13.12 It is not in dispute that, in exercise of such delegated powers, the Hon’ble Lt. Governor has, from time to time, created and restructured



posts across various services under GNCTD, including Group 'A' posts in multiple departments. Such actions have remained unchallenged and have attained finality. The impugned notification is, therefore, in line with an established administrative practice and cannot be singled out for adverse scrutiny.

13.13 The reliance placed by the applicants on the Office Memorandum dated 30.09.2022 is misplaced. The said O.M. pertains specifically to Organized Central Group 'A' Services and lays down a procedure for their cadre review. The DASS cadre, admittedly, is a Central Civil Service Group 'B' and does not fall within the ambit of the said O.M.

13.14 The creation of certain Group 'A' posts within an existing Group 'B' service does not *ipso facto* convert it into a Group 'A' service, nor does it attract the procedural requirements applicable to organized Group 'A' cadres. The contention of procedural violation is, therefore, devoid of merit.

13.15 It is trite law that matters relating to creation, abolition, restructuring of posts, and prescription of service conditions fall squarely within the realm of executive policy. The Hon'ble Supreme Court in ***P.U. Joshi v. Accountant General Ahmedabad*** (supra) has categorically held that such matters lie within the exclusive domain of the State and are not amenable to judicial interference unless shown to be arbitrary, mala fide, or violative of constitutional or statutory provisions. The applicants have failed to demonstrate any such illegality or arbitrariness. Their objections are primarily based on apprehensions



regarding promotional avenues and perceived service disadvantages, which cannot constitute a legally enforceable right.

13.16 It is also evident that the applicants do not possess any enforceable legal right to dictate the structure of a cadre or the inclusion of particular posts therein. At best, they may seek consideration for cadre review; however, they cannot claim a vested right to determine the outcome of such policy decisions.

13.17 We also agree with the submissions advanced on behalf of GNCTD that the creation of posts and cadre restructuring falls within the domain of executive policy. The Hon'ble Supreme Court in ***P.U. Joshi and Ors. vs. Accountant General, Ahmedabad and ors.***, reported in (2003) 2 SCC 632, the relevant portion thereof has already been quoted in above para, has categorically held that matters relating to the creation or abolition of posts, structuring of cadres, and prescription of service conditions fall within the exclusive domain of the executive, and judicial interference is warranted only where there is a clear violation of constitutional or statutory provisions. No such violation has been established in the present case.

13.18 Viewed from any angle whether under the constitutional framework of Article 309, the statutory interpretation of "Central Government," or the consistent delegation of powers, the competence of the Hon'ble Lt. Governor stands clearly established.



13.19 Thus, we hold that the Hon'ble Lt. Governor, being a delegatee of the Hon'ble President under the proviso to Article 309 of the Constitution, is fully competent to frame Recruitment Rules for the DASS cadre. The creation of Group 'A' posts within the said cadre is legally valid and within jurisdiction; and the impugned notification does not suffer from any lack of competence, statutory violation, or constitutional infirmity. Accordingly, this issue is answered in the affirmative, in favour of the respondents and against the applicants.

14. So far as issue 2., as framed in para 12 above, i.e., *whether the respondents' action in abolishing 221 posts meant for DANICS/IAS cadre and creating/encadring equivalent Group 'A' posts in DASS cadre is legally sustainable*, is concerned, we observe that it is settled legal position that creation and abolition of posts is a policy decision of the executive, and the scope of judicial review is limited.

14.1 In ***State of Haryana v. Navneet Verma*** reported in (2008) 2 SCC 65, the Hon'ble Supreme Court held that courts ordinarily do not interfere in matters relating to creation or abolition of posts unless the decision is arbitrary, mala fide or contrary to statutory rules. The relevant paras of the said judgment read as under:-

"11. Before proceeding to ascertain the answer for the above question, it is useful to refer to the appointment order of the Government of Haryana dated 13-7-1993 whereby the respondent herein was appointed as Accounts Executive in HBPE. Among the other terms, Clause 2 of the said order is relevant which reads as under:

"This offer of appointment is purely against temporary post which is liable to be abolished at any time and carries no promise of subsequent permanent employment. No offer of permanent vacancy can be made to him at present. Consequently his services can be terminated without notice



whenever there is no vacancy against which he can be retained.”

It is clear that the respondent herein was appointed purely against temporary post and it is liable to be abolished at any time. The said clause makes it clear that the post has no assurance or promise for a permanent employment. It also makes it clear that his services can be terminated without notice whenever there is no vacancy against which he can be retained. Now, with this background, let us consider the law laid down by this Court with regard to power of the Government in abolishing temporary/permanent post.

12. In *M. Ramanatha Pillai v. State of Kerala* [(1973) 2 SCC 650 : 1973 SCC (L&S) 560 : (1974) 1 SCR 515] a Constitution Bench of this Court held as under: (SCC p. 657, para 23)

“23. A post may be abolished in good faith. The order abolishing the post may lose its effective character if it is established to have been made arbitrarily, mala fide or as a mask of some penal action within the meaning of Article 311(2).”

13. In *Kedar Nath Bahl v. State of Punjab* [(1974) 3 SCC 21] a three-Judge Bench of this Court held in para 11 as under: (SCC p. 27)

“11. ... If, in the interest of the administration, the temporary post is abolished, the question as to what were the personal relations between the appellant and his superiors was irrelevant. Moreover, all that the appellant has been able to say is that his immediate superiors in the Department were hostile to him. But here we are concerned not with the action of his immediate superiors but the action of the Government. The decision to discontinue the post was the decision of the Government and it is not alleged in the writ petition that in taking this decision the Government acted mala fide. We, therefore, agree with the High Court that there is no substance in the allegation that the post was discontinued or abolished in order to punish the appellant.”

14. In *State of Haryana v. Des Raj Sangar* [(1976) 2 SCC 844 : 1976 SCC (L&S) 336] this Court, in para 8, has held: (SCC p. 848)

“8. ... The fact that the post to be abolished is held by a person who is confirmed in that post and the post which is not abolished is held by a person who is not permanent would not affect the legality of the decision to abolish the former post as long as the decision to abolish the post is taken in good faith.”

15. In *N.C. Singhal (Dr.) v. Union of India* [(1980) 3 SCC 29 : 1980 SCC (L&S) 269] similar issue was considered in detail. Accepting the stand of the Government of India in abolishing the post, this Court held thus: (SCC pp. 44-45, para 18)

“18. ... The need for the post or the requirements of the hospital or the need for an ad hoc or additional appointment is a matter which the Government is competent to decide and in the absence of requisite material the court cannot interpose its own decision on the necessity of creation or abolition of posts. Whether a particular post is necessary is a matter depending upon the exigencies of the situation and administrative necessity. The



*Government is a better judge of the interests of the general public for whose service the hospitals are set up. And whether a hospital catering to the needs of general public providing medical relief in different specialities has need for a particular post in a particular speciality would be better judged by the Government running the hospital. If Government is a better judge it must have the power to create or abolish the posts depending upon the needs of the hospital and the requirements of general public. Creation and abolition of posts is a matter of government policy and every sovereign Government has this power in the interest and necessity of internal administration. The creation or abolition of post is dictated by policy decision, exigencies of circumstances and administrative necessity. The creation, the continuance and the abolition of post are all decided by the Government in the interest of administration and general public (see *M. Ramanatha Pillai v. State of Kerala* [(1973) 2 SCC 650 : 1973 SCC (L&S) 560 : (1974) 1 SCR 515]). The court would be the least competent in the face of scanty material to decide whether the Government acted honestly in creating a post or refusing to create a post or its decision suffers from mala fide, legal or factual.”*

16. *In the recent decision, *Avas Vikas Sansthan v. Engineers Assn.* [(2006) 4 SCC 132 : 2006 SCC (L&S) 613] analysing all earlier decisions, this Court has concluded: (SCC p. 148, para 59)*

“59. It is well settled that the power to abolish a post which may result in the holder thereof ceasing to be a government servant has got to be recognised. The measure of economy and the need for streamlining the administration to make it more efficient may induce any State Government to make alterations in the staffing pattern of the civil services necessitating either the increase or the decrease in the number of posts or abolish the post. In such an event, a department which was abolished or abandoned wholly or partially for want of funds, the court cannot, by a writ of mandamus, direct the employer to continue employing such employees as have been dislodged.”

17. *We summarise the power of the Government in abolishing a post and role of the court for interference:*

- (a) *the power to create or abolish a post rests with the Government;*
- (b) *whether a particular post is necessary is a matter depending upon the exigencies of the situation and administrative necessity;*
- (c) *creation and abolition of posts is a matter of government policy and every sovereign government has this power in the interest and necessity of internal administration;*
- (d) *creation, continuance and abolition of posts are all decided by the Government in the interest of administration and general public;*
- (e) *the court would be the least competent in the face of scanty material to decide whether the Government acted honestly in creating a post or refusing to create a post or its decision suffers from mala fides, legal or factual;*



- (f) *as long as the decision to abolish the post is taken in good faith in the absence of material, interference by the court is not warranted."*

14.2 Similarly, in ***P.U. Joshi v. Accountant General***, reported in (2003) 2 SCC 632, Hon'ble Supreme Court held that the State has the power to restructure cadres and alter service conditions, and employees have no vested right in the existing cadre structure. The relevant para of the said judgment reads as under:-

"10. We have carefully considered the submissions made on behalf of both parties. Questions relating to the constitution, pattern, nomenclature of posts, cadres, categories, their creation/abolition, prescription of qualifications and other conditions of service including avenues of promotions and criteria to be fulfilled for such promotions pertain to the field of policy is within the exclusive discretion and jurisdiction of the State, subject, of course, to the limitations or restrictions envisaged in the Constitution of India and it is not for the statutory tribunals, at any rate, to direct the Government to have a particular method of recruitment or eligibility criteria or avenues of promotion or impose itself by substituting its views for that of the State. Similarly, it is well open and within the competency of the State to change the rules relating to a service and alter or amend and vary by addition/subtraction the qualifications, eligibility criteria and other conditions of service including avenues of promotion, from time to time, as the administrative exigencies may need or necessitate. Likewise, the State by appropriate rules is entitled to amalgamate departments or bifurcate departments into more and constitute different categories of posts or cadres by undertaking further classification, bifurcation or amalgamation as well as reconstitute and restructure the pattern and cadres/categories of service, as may be required from time to time by abolishing the existing cadres/posts and creating new cadres/posts. There is no right in any employee of the State to claim that rules governing conditions of his service should be forever the same as the one when he entered service for all purposes and except for ensuring or safeguarding rights or benefits already earned, acquired or accrued at a particular point of time, a government servant has no right to challenge the authority of the State to amend, alter and bring into force new rules relating to even an existing service."

14.3 Keeping in view the above observations of the Hon'ble Supreme Court in the cases case, we observe that it is well settled that the power to create, abolish or restructure posts is an inherent executive function. The courts/Tribunals exercise limited judicial review in such matters



and ordinarily do not interfere unless the decision is shown to be mala fide, arbitrary, or in violation of statutory provisions.

14.4 In the present case, the impugned action is based on administrative considerations, including cadre management and addressing stagnation in DASS. The applicants have failed to demonstrate any statutory prohibition against such restructuring. No vested right accrues to the applicants to insist that particular posts must continue in DANICS cadre. Accordingly, the action of the respondents is legally sustainable and does not warrant interference.

15. So far as issue 3., as framed in in para 12 above, i.e., *whether such action amounts to creation of a “parallel State Civil Service” in violation of constitutional scheme and statutory Recruitment Rules governing DANICS*, is concerned, the contention of the applicants that creation of Group ‘A’ posts in DASS amounts to a “parallel State Civil Service” is not tenable as it is not the case of the applicants that DANICS has been abolished or replaced. DANICS continues to exist as a separate service governed by its own Recruitment Rules. The impugned action merely provides for creation of certain posts within the DASS framework and does not alter the statutory existence or identity of DANICS.

15.1 We observe that it is admitted position that even posts carrying the pay scales of Group ‘A’ have been incorporated within DANICS, which is otherwise classified as a Group ‘B’ service. However, the applicants, at that relevant point in time, did not raise any objection to such inclusion of higher-grade posts. Having acquiesced to a similar administrative



action in the past, it is not open to the applicants now to selectively challenge an analogous exercise undertaken in the case of DASS by invoking the doctrine of legitimate expectation or on other grounds as noted above. The principle of legitimate expectation cannot be applied in a vacuum or in a manner that permits inconsistent or selective assertions. A party that has accepted a comparable policy decision without demur cannot subsequently assail a similar action on identical grounds. Such an approach is legally untenable, being hit by the doctrines of acquiescence and estoppel, and therefore cannot be sustained in law.

15.2 In ***B.S. Yadav v. State of Haryana***, the Supreme Court observed that restructuring of services or creation of promotional avenues within a cadre does not *ipso facto* amount to creation of a new service unless the statutory framework is fundamentally altered. The relevant paras of the said judgment provide as under:-

"40. On a plain reading of Articles 235 and 309 of the Constitution, it is clear that the power to frame rules regarding seniority of officers in the judicial service of the State is vested in the Governor and not in the High Court. The first part of Article 235 vests the control over District Courts and courts subordinate thereto in the High Court. But the second part of that article says that nothing in the article shall be construed as taking away from any person belonging to the judicial service of the State any right of appeal which he may have under the law regulating the conditions of his service or as authorising the High Court to deal with him otherwise than in accordance with the conditions of his service prescribed under such law. Thus, Article 235 itself defines the outer limits of the High Court's power of control over the District Courts and courts subordinate thereto. In the first place, in the exercise of its control over the District Courts and subordinate courts, it is not open to the High Court to deny to a member of the subordinate judicial service of the State the right of appeal given to him by the law which regulates the conditions of his service. Secondly, the High Court cannot, in the exercise of its power of control, deal with such person otherwise than in accordance with the conditions of his service which are prescribed by such law.



41. Who has the power to pass such a law? Obviously not the High Court because, there is no power in the High Court to pass a law, though rules made by the High Court in the exercise of power conferred upon it in that behalf may have the force of law. There is a distinction between the power to pass a law and the power to make rules, which by law, have the force of law. Besides, “law” which the second part of Article 235 speaks of, is law made by the legislature because, if it were not so, there was no purpose in saying that the High Court's power of control will not be construed as taking away certain rights of certain persons under a law regulating their conditions of service. It could not have been possibly intended to be provided that the High Court's power of control will be subject to the conditions of service prescribed by it. The clear meaning, therefore, of the second part of Article 235 is that the power of control vested in the High Court by the first part will not deprive a judicial officer of the rights conferred upon him by a law made by the legislature regulating his conditions of service.

42. Article 235 does not confer upon the High Courts the power to make rules relating to conditions of service of judicial officers attached to District Courts and the courts subordinate thereto. Whenever it was intended to confer on any authority the power to make any special provisions or rules, including rules relating to conditions of service, the Constitution has stated so in express terms. See, for example Articles 15(4), 16(4), 77(3), 87(2), 118, 145(1), 146(1) & (2), 148(5), 166(3), 176(2), 187(3), 208, 225, 227(2) & (3), 229(1) & (2), 234, 237 and 283(1) & (2). Out of this fasciculus of Articles, the provisions contained in Articles 225, 227(2) & (3) and 229(1) & (2) bear relevance on the question, because these Articles confer power on the High Court to frame rules for certain specific purposes. Article 229(2) which is directly in point provides in express terms that subject to the provisions of any law made by the legislature of the State, the conditions of service of officers and servants of a High Court shall be such as may be prescribed by the rules made by the Chief Justice or by some other Judge or officer of the court authorised by the Chief Justice to make rules for the purpose. With this particular provision before them, the framers of the Constitution would not have failed to incorporate a similar provision in Article 235 if it was intended that the High Courts should have the power to make rules regulating the conditions of service of judicial officers attached to District Courts and courts subordinate thereto.

43. Having seen that the Constitution does not confer upon the High Court the power to make rules regulating the conditions of service of judicial officers of the District Courts and the courts subordinate thereto, we must proceed to consider : who, then, possesses that power? Article 309 furnishes the answer. It provides that Acts of the appropriate legislature may regulate the recruitment and conditions of service of persons appointed to posts in connection with the affairs of the union or of any State. Article 246(3), read with Entry 41 in List II of the Seventh Schedule, confers upon the State legislatures the power to pass laws with respect to “State Public Services” which must include the judicial services of the State. The power of control vested in the High Court by Article 235 is thus expressly, by the terms of that Article itself, made subject to the law which the State legislature may pass for regulating the recruitment and service conditions of judicial officers of the State. The power to pass such a law was evidently not considered by the Constitution-makers as an encroachment on the “control jurisdiction” of the High Court under the first part of Article 235. The



control over the District Courts and subordinate courts is vested in the High Court in order to safeguard the independence of the judiciary. It is the High Court, not the executive, which possesses control over the State judiciary. But, what is important to bear in mind is that the Constitution which has taken the greatest care to preserve the independence of the judiciary did not regard the power of the State legislature to pass laws regulating the recruitment and conditions of service of judicial officers as an infringement of that independence. The mere power to pass such a law is not violative of the control vested in the High Court over the State judiciary.

44. It is in this context that the proviso to Article 309 assumes relevance and importance. The State legislature has the power to pass laws regulating the recruitment and conditions of service of judicial officers of the State. But it was necessary to make a suitable provision enabling the exercise of that power until the passing of the law by the legislature on that subject. The Constitution furnishes by its provisions ample evidence that it abhors a vacuum. It has therefore made provisions to deal with situations which arise on account of the ultimate repository of a power not exercising that power. The proviso to Article 309 provides, insofar as material, that until the State legislature passes a law on the particular subject, it shall be competent to the Governor of the State to make rules regulating the recruitment and the conditions of service of the judicial officers of the State. The Governor thus steps in when the legislature does not act. The power exercised by the Governor under the proviso is thus a power which the legislature is competent to exercise but has in fact not yet exercised. It partakes of the characteristics of the legislative, not executive, power. It is legislative power.

45. That the Governor possesses legislative power under our Constitution is incontrovertible and, therefore, there is nothing unique about the Governor's power under the proviso to Article 309 being in the nature of a legislative power. By Article 168, the Governor of a State is a part of the legislature of the State. And the most obvious exercise of legislative power by the Governor is the power given to him by Article 213 to promulgate ordinances when the legislature is not in session. Under that Article, he exercises a power of the same kind which the legislature normally exercises : the power to make laws. The heading of Chapter IV of Part VI of the Constitution, in which Article 213 occurs, is significant: "Legislative Power of the Governor". The power of the Governor under the proviso to Article 309 to make appropriate rules is of the same kind. It is legislative power. Under Article 213, he substitutes for the legislature because the legislature is in recess. Under the proviso to Article 309, he substitutes for the legislature because the legislature has not yet exercised its power to pass an appropriate law on the subject.

46. It is true that the power conferred by Article 309 is "subject to" the provisions of the Constitution. But it is fallacious for that reason to contend that the Governor cannot frame rules regulating the recruitment and conditions of service of the judicial officers of the State. In the first place, the power of control conferred upon High Courts by the first part of Article 235 is expressly made subject, by the second part of that Article, to laws regulating conditions of service of its judicial officers. The first part of Article 235 is, as it were, subject to a proviso which carves out an exception from the area covered by it. Secondly, the Governor, in terms equally express, is given the power by the proviso to



Article 309 to frame rules on the subject. A combined reading of Articles 235 and 309 will yield the result that though the control over subordinate courts is vested in the High Court, the appropriate legislature, and until that legislature acts, the Governor of the State, has the power to make rules regulating the recruitment and the conditions of service of judicial officers of the State. The power of the legislature or of the Governor thus to legislate is subject to all other provisions of the Constitution like, for example, Articles 14 and 16. The question raised before us is primarily one of the location of the power, not of its extent. The second part of Article 235 recognises the legislative power to provide for recruitment and the conditions of service of the judicial officers of the State. The substantive provision of Article 309, including its proviso, fixes the location of the power. The opening words of Article 309 limit the amplitude of that power.

47. We entertain no doubt that seniority is a condition of service and an important one at that. The control vested in the High Court by the first part of Article 235 is therefore subject to any law regulating seniority as envisaged by the second part of that article. The power to make such law is vested by Article 309 in the legislature, and until it acts, in the Governor. Whether it is the legislature which passes an Act or the Governor who makes rules regulating seniority, the end product is “law” within the meaning of the second part of Article 235. The legislatures of Punjab and Haryana not having passed an Act regulating seniority of the respective State judicial officers, the Governors of the two States have the power to frame rules for that purpose under the proviso to Article 309 of the Constitution. Such rules are, of course, subject to the provisions of the Constitution and to the provisions of any Act which the appropriate legislature may pass on the subject.

48. As we have said earlier, the mere power to pass a law or to make rules having the force of law regulating seniority does not impinge upon the control vested in the High Court over the District Courts and the courts subordinate thereto by Article 235. Such law or the rules, as the case may be, can provide for general or abstract rules of seniority, leaving it to the High Court to apply them to each individual case as and when the occasion arises. The power to legislate on seniority being subject to all other provisions of the Constitution, cannot be exercised in a manner which will affect or be detrimental to the control vested in the High Court by Article 235. To take an easy example, the State legislature or the Governor cannot provide by law or by rules governing seniority that the State Government in the concerned department will determine the seniority of judicial officers of the State by the actual application of the rules of seniority to each individual case. Thereby, the High Court's control over the State judiciary shall have been significantly impaired. The opening words of Article 309, “Subject to the provisions of this Constitution” do not exclude the provision contained in the first part of Article 235. It follows that though the legislature or the Governor has the power to regulate seniority of judicial officers by laying down rules of general application, that power cannot be exercised in a manner which will lead to interference with the control vested in the High Court by the first part of Article 235. In a word, the application of law governing seniority must be left to the High Court. The determination of seniority of each individual judicial officer is a matter which indubitably falls within the area of control of the High Court over the District Courts and the courts subordinate thereto. For the same reason, though rules of recruitment can provide for a period of probation, the question



whether a particular judicial officer has satisfactorily completed his probation or not is a matter which is exclusively in the domain of the High Court to decide. That explains partly why in High Court of Punjab & Haryana v. State of Haryana [(1975) 1 SCC 843 : 1975 SCC (L&S) 229 : (1975) 3 SCR 365] this Court held that the power to confirm a judicial officer is vested in the High Court and not in the Governor.

49. *The error of the High Court's point of view, like the error of the report dated May 2, 1978 of its Sub-committee, consists in the assumption that the Governor, while acting in the exercise of power conferred by the proviso to Article 309, exercises an executive function. That is why it felt so greatly exercised that the independence of the judiciary was being eroded. That independence has to be preserved at all costs but, as constitutional realists, we cannot deprive the legislature or the Governor of their legitimate legislative powers under Article 309. That power is subject to all other provisions of the Constitution which means that the power cannot be exercised in a manner which will lead, for example, to the violation of Articles 14, 16 or the pervasive ambit of the first part of Article 235. Since the power conferred by Article 309 is not absolute or untrammelled, it will be wrong to test the validity of that power on the anvil of its possible abuse. The various constitutional safeguards are an insurance against its abuse."*

15.3 At this stage, we observe that in the present case, there is no repeal or amendment of DANICS Rules shown to be *ultra vires*; no exclusive replacement of DANICS by DASS has occurred; and the administrative decision merely reorganizes posts for functional efficiency. Thus, the allegation of creation of a parallel civil service is speculative and not borne out by record.

16. So far as issue 5., as framed in para 12 above, i.e., *whether the impugned decisions dated 07.08.2023, 24.08.2023 and the GNCTDSS (Second Amendment) Rules, 2024 suffer from non-compliance of mandatory procedure prescribed by DoP&T and Department of Expenditure*, is concerned, we find that the applicants have relied upon Office Memoranda issued by DoP&T and Department of Expenditure. However, it is trite law that executive instructions do not have statutory force unless incorporated into rules framed under Article 309. In **Union**



of India v. Pushpa Rani (supra), the Hon'ble Supreme Court held that such instructions are directory in nature unless expressly made mandatory. The relevant portion of the said judgment reads as under:-

"30. From what we have noted above, it is clear that the policies contained in Letters dated 25-6-1985 and 9-10-2003 are substantially dissimilar. The exercise of restructuring envisaged in the first policy was in the nature of upgradation of substantial number of posts in different cadres and the upgraded posts were to be filled simply by scrutinising the service records of the employees without holding any written and/or viva voce test and there was no merit-based selection. In contrast, the restructuring exercise envisaged in Letter dated 9-10-2003 resulted in creation of additional posts in some cadres with duties and responsibilities of greater importance and which could be filled by promotion from amongst the persons fulfilling the conditions of eligibility and satisfying the criteria of suitability and/or merit. Para 13 of Letter dated 9-10-2003 is, in itself, demonstrative of the difference between simple upgradation of posts in the cadre of Supervisors which are required to be filled without subjecting the incumbents of the posts to normal selection procedure whereas the additional posts becoming available in other cadres are required to be filled by promotion.

31. In legal parlance, upgradation of a post involves the transfer of a post from the lower to the higher grade and placement of the incumbent of that post in the higher grade. Ordinarily, such placement does not involve selection but in some of the service rules and/or policy framed by the employer for upgradation of posts, provision has been made for denial of higher grade to an employee whose service record may contain adverse entries or who may have suffered punishment — *D.P. Upadhyay v. N.R. Baroda House* [(2002) 10 SCC 258 : 2003 SCC (L&S) 250].

32. The word "promotion" means "advancement or preferment in honour, dignity, rank or grade". "Promotion" thus not only covers advancement to higher position or rank but also implies advancement to a higher grade. In service law the expression "promotion" has been understood in the wider sense and it has been held that "promotion can be either to a higher pay scale or to a higher post" — *State of Rajasthan v. Fateh Chand Soni* [(1996) 1 SCC 562 : 1996 SCC (L&S) 340].

33. Once it is recognised that the additional posts becoming available as a result of restructuring of different cadres are required to be filled by promotion from amongst the employees who satisfy the conditions of eligibility and are adjudged suitable, there can be no rational justification to exclude the applicability of the policy of reservation while effecting promotions, more so because it has not been shown that the procedure for making appointment by promotion against such additional posts is different than the one prescribed for normal promotion. In *Fateh Chand Soni* case [(1996) 1 SCC 562 : 1996 SCC (L&S) 340] this Court interpreted the provisions contained in the *Rajasthan Police Service Rules, 1954*, which regulate appointment to the selection scale in the service and held that such appointment constitutes promotion. The Court then considered two earlier judgments in *Lalit*



Mohan Deb v. Union of India [(1973) 3 SCC 862 : 1973 SCC (L&S) 272] and Union of India v. S.S. Ranade [(1995) 4 SCC 462 : 1995 SCC (L&S) 1033 : (1995) 30 ATC 559] and declared that the High Court was in error in holding that appointment to the selection scale does not constitute promotion.

34. *In Ram Prasad v. D.K. Vijay [(1999) 7 SCC 251 : 1999 SCC (L&S) 1275] it was submitted that the view taken in Fateh Chand Soni case [(1996) 1 SCC 562 : 1996 SCC (L&S) 340] requires reconsideration because the same is inconsistent with the latter judgments in Ajit Singh Januja v. State of Punjab [(1996) 2 SCC 715 : 1996 SCC (L&S) 540 : (1996) 33 ATC 239] and Ajit Singh (II) v. State of Punjab [(1999) 7 SCC 209 : 1999 SCC (L&S) 1239]. While rejecting this plea, the Constitution Bench observed: (Ram Prasad case [(1999) 7 SCC 251 : 1999 SCC (L&S) 1275], SCC p. 255, para 15)*

“15. The contention of Shri Gopal Subramaniam for the general candidates that appointment from senior scale to selection scale is not a promotion and that Fateh Chand Soni [(1996) 1 SCC 562 : 1996 SCC (L&S) 340] requires reconsideration in view of the judgments in Union of India v. S.S. Ranade [(1995) 4 SCC 462 : 1995 SCC (L&S) 1033 : (1995) 30 ATC 559] and Lalit Mohan Deb v. Union of India [(1973) 3 SCC 862 : 1973 SCC (L&S) 272] cannot be accepted. We are unable to agree. We find that both these cases have been referred to and explained in Fateh Chand Soni case [(1996) 1 SCC 562 : 1996 SCC (L&S) 340]. Therefore, the reserved candidates are entitled to be promoted to the selection scale by way of the roster points. But this has to be done in the manner mentioned in R.K. Sabharwal v. State of Punjab [(1995) 2 SCC 745 : 1995 SCC (L&S) 548 : (1995) 29 ATC 481]. The appeal of the general candidates has to fail.”

(emphasis supplied)

35. *A careful reading of the policy contained in Letter dated 9-10-2003 shows that with a view to strengthen and rationalise the staffing pattern, the Ministry of Railways had undertaken review of certain cadres. The basis of the review was functional, operational and administrative requirement of the Railways. This exercise was intended to improve the efficiency of administration by providing incentives to the existing employees in the form of better promotional avenues and at the same time requiring the promotees to discharge more onerous duties. The policy envisaged that additional posts becoming available in the higher grades as a sequel to restructuring of some of the cadres should be filled by promotion by considering such of the employees who satisfy the conditions of eligibility including the minimum period of service and who are adjudged suitable by the process of selection. This cannot be equated with upgradation of posts which are required to be filled by placing the existing incumbents in the higher grade without subjecting them to the rigor of selection.*

36. *In view of the above discussion, we hold that the Railway Board did not commit any illegality by directing that the existing instructions with regard to the policy of reservation of posts for Scheduled Castes and Scheduled Tribes will apply at the stage of effecting promotion against the additional posts and the Tribunal committed serious illegality by striking down Para 14 of Letter dated 9-10-2003.*



37. *Before parting with this aspect of the case, we consider it necessary to reiterate the settled legal position that matters relating to creation and abolition of posts, formation and structuring/restructuring of cadres, prescribing the source/mode of recruitment and qualifications, criteria of selection, evaluation of service records of the employees fall within the exclusive domain of the employer. What steps should be taken for improving efficiency of the administration is also the preserve of the employer. The power of judicial review can be exercised in such matters only if it is shown that the action of the employer is contrary to any constitutional or statutory provision or is patently arbitrary or is vitiated due to mala fides. The court cannot sit in appeal over the judgment of the employer and ordain that a particular post be filled by direct recruitment or promotion or by transfer. The court has no role in determining the methodology of recruitment or laying down the criteria of selection. It is also not open to the court to make comparative evaluation of the merit of the candidates. The court cannot suggest the manner in which the employer should structure or restructure the cadres for the purpose of improving efficiency of administration."*

16.1 Keeping in view above observations of the Hon'ble Supreme Court, we observe that in the present case, the proposal was examined at various administrative levels; the Ministry of Home Affairs, being the competent authority in matters concerning DANICS, granted its "No Objection". There is no material to establish total absence of procedural compliance.

16.2 The procedure followed in arriving at the said decision would not vitiate the decision unless prejudice is demonstrated, which is absent in the present case. Therefore, the challenge on the ground of procedural non-compliance is untenable.

17. So far as issue 5., as framed in para 12 above, i.e., *whether the impugned actions are vitiated for violation of principles of natural justice*, is concerned, we find that the applicants contention is that no opportunity of hearing was granted and their representations were not considered before passing the impugned decision. However, we observe that the law is well settled that principles of natural justice are not



attracted to policy decisions or legislative actions of general application.

In ***Union of India v. Cynamide India Ltd.***, reported in (1987) 2 SCC 720, the Hon'ble Supreme Court held that legislative actions do not require prior hearing. The relevant paras of the same reads as under:-

"5. The second observation we wish to make is, legislative action, plenary or subordinate, is not subject to rules of natural justice. In the case of Parliamentary legislation, the proposition is self-evident. In the case of subordinate legislation, it may happen that Parliament may itself provide for a notice and for a hearing — there are several instances of the legislature requiring the subordinate legislating authority to give public notice and a public hearing before say, for example, levying a municipal rate — in which case the substantial non-observance of the statutorily prescribed mode of observing natural justice may have the effect of invalidating the subordinate legislation. The right here given to rate payers or others is in the nature of a concession which is not to detract from the character of the activity as legislative and not quasi-judicial. But, where the legislature has not chosen to provide for any notice or hearing, no one can insist upon it and it will not be permissible to read natural justice into such legislative activity.

6. Occasionally, the legislature directs the subordinate legislating body to make "such enquiry as it thinks fit" before making the subordinate legislation. In such a situation, while such enquiry by the subordinate legislating body as it deems fit is a condition precedent to the subordinate legislation, the nature and the extent of the enquiry is in the discretion of the subordinate legislating body and the subordinate legislation is not open to question on the ground that the enquiry was not as full as it might have been. The provision for "such enquiry as it thinks fit" is generally an enabling provision, intended to facilitate the subordinate legislating body to obtain relevant information from all and whatever source and not intended to vest any right in anyone other than the subordinate legislating body. It is the sort of enquiry which the legislature itself may cause to be made before legislating, an enquiry which will not confer any right on anyone.

17.1 The above position was reaffirmed in ***Balco Employees' Union v. Union of India***, reported in (2002) 2 SCC 333. The relevant paras of the same reads as under:-

"47. Process of disinvestment is a policy decision involving complex economic factors. The courts have consistently refrained from interfering with economic decisions as it has been recognised that economic expediencies lack adjudicative disposition and unless the economic decision, based on economic expediencies, is demonstrated to be so violative of constitutional or legal limits on power or so abhorrent to reason, that the courts would decline to interfere. In matters relating to economic issues, the Government has, while taking a decision, right



to “trial and error” as long as both trial and error are bona fide and within limits of authority. There is no case made out by the petitioner that the decision to disinvest in BALCO is in any way capricious, arbitrary, illegal or uninformed. Even though the workers may have interest in the manner in which the Company is conducting its business, inasmuch as its policy decision may have an impact on the workers' rights, nevertheless it is an incidence of service for an employee to accept a decision of the employer which has been honestly taken and which is not contrary to law. Even a government servant, having the protection of not only Articles 14 and 16 of the Constitution but also of Article 311, has no absolute right to remain in service. For example, apart from cases of disciplinary action, the services of government servants can be terminated if posts are abolished. If such employee cannot make a grievance based on Part III of the Constitution or Article 311 then it cannot stand to reason that like the petitioners, non-government employees working in a company which by reason of judicial pronouncement may be regarded as a State for the purpose of Part III of the Constitution, can claim a superior or a better right than a government servant and impugn its change of status. In taking of a policy decision in economic matters at length, the principles of natural justice have no role to play. While it is expected of a responsible employer to take all aspects into consideration including welfare of the labour before taking any policy decision that, by itself, will not entitle the employees to demand a right of hearing or consultation prior to the taking of the decision.

48. Merely because the workmen may have protection of Articles 14 and 16 of the Constitution, by regarding BALCO as a State, it does not mean that the erstwhile sole shareholder viz. Government had to give the workers prior notice of hearing before deciding to disinvest. There is no principle of natural justice which requires prior notice and hearing to persons who are generally affected as a class by an economic policy decision of the Government. If the abolition of a post pursuant to a policy decision does not attract the provisions of Article 311 of the Constitution as held in *State of Haryana v. Des Raj Sangar* [(1976) 2 SCC 844 : 1976 SCC (L&S) 336] on the same parity of reasoning, the policy of disinvestment cannot be faulted if as a result thereof the employees lose their rights or protection under Articles 14 and 16 of the Constitution. In other words, the existence of rights of protection under Articles 14 and 16 of the Constitution cannot possibly have the effect of vetoing the Government's right to disinvest. Nor can the employees claim a right of continuous consultation at different stages of the disinvestment process. If the disinvestment process is gone through without contravening any law, then the normal consequences as a result of disinvestment must follow."

17.2 Now we observe that the impugned decisions in the present case relate to Cadre restructuring and Amendment of service rules. Both fall within the realm of policy/legislative action. Hence, no individual hearing was required, and non-consideration of representations, even if



assumed, does not vitiate a policy decision. Thus, the plea of violation of natural justice is devoid of merit.

18. So far as issue 6., as framed in para 12 above, i.e., *whether the applicants have established violation of Articles 14 and 16 of the Constitution of India*, is concerned, we observe that the challenge under Articles 14 and 16 is primarily founded on alleged arbitrariness and adverse impact on promotional prospects. However, it is settled that there is no fundamental right to promotion or to a particular cadre structure, and policy decisions affecting service conditions do not violate Article 14 unless shown to be manifestly arbitrary.

19. In ***E.P. Royappa v. State of Tamil Nadu***, reported in (1974) 4 SCC 3, arbitrariness was held to be the touchstone of equality. However, a decision taken in administrative interest, applicable uniformly, cannot be termed arbitrary merely because it affects one class of employees. The relevant portion of the said judgment reads as under:-

"84. So far as the question of validity of the appointment to the post of Officer on Special Duty is concerned, we think that this appointment also suffers from the same infirmity. The Order dated June 26, 1972 first created the post of Officer on Special Duty "of the rank of Member, Board of Revenue", but on the next day, when it was decided to appoint the petitioner to that post, the Order dated June 26, 1972 was modified by the Order dated June 27, 1972 and the post of Officer on Special Duty was created "in the grade of Chief Secretary". These two Orders dated June 26, 1972 and June 27, 1972 being of the same nature and in almost identical words as the Order dated April 7, 1971, what we have said above in regard to the Order dated April 7, 1971 must apply equally in relation to these two Orders dated June 26, 1972 and June 27, 1972. It is clear, for reasons we have already discussed while dealing with the Order dated April 7, 1971, that in making these two Orders dated June 26, 1972 and June 27, 1972, the State Government proceeded on the wrong assumption that it can create a non-Cadre post in the rank or grade of any Cadre post it likes, regardless of the nature and responsibilities of the functions and duties attached to such non-Cadre post. The State Government first created the post of Officer on Special Duty in the rank of Member, Board of Revenue and on the very next day, because it was decided that the petitioner should be appointed to that post, converted it into one in the grade of Chief Secretary. This shows clearly that the State Government did not apply its mind and determine on an objective appraisal of the nature and responsibilities of the functions and duties attached to the post of Officer on Special Duty whether it was equivalent in status and responsibility to the post of Member, Board of Revenue or to the



post of Chief Secretary. The nature and responsibilities of the functions and duties attached to the post of Officer on Special Duty could not change in a day and indeed it was not the case of the respondents that they changed at any time. If that be so, how could the post of Officer on Special Duty be declared to be equivalent in status and responsibility to the post of Member, Board of Revenue on one day and to the post of Chief Secretary, on the very next day. Either it was equivalent to the post of Member, Board of Revenue or equivalent to the post of Chief Secretary. But it could not be equivalent to one post at one time and to another post at another time, when the nature and responsibilities of the functions and duties attached to it remained the same. This establishes beyond doubt that, in making the Orders dated June 26, 1972 and June 27, 1972, the State Government did not apply its mind and objectively determine the equivalence of the post of Officer on Special Duty, but gave it a rank or grade according as who was the officer going to be appointed to it. That is in fact what the State Government clearly and in so many words admitted in para 28 of its affidavit in reply: “—although the post of Officer on Special Duty was first created in the rank of Member, Board of Revenue, with the appointment of the petitioner to that post, the status of that post was equated to that of the Chief Secretary”. This is also borne out by the fact that when the petitioner went on leave, a Member of the Board of Revenue was appointed to discharge the functions of the post of Officer on Special Duty and that post was once again brought down to the rank of Member, Board of Revenue. The Order dated June 27, 1972 in any event did not contain any declaration as to equivalence in “responsibility”. There was thus no compliance with the requirement of Rule 9, sub-rule (1) and the appointment of the petitioner to the post of Officer on Special Duty was accordingly liable to be held invalid for contravention of that sub-rule. But we cannot in this petition under Article 32 give relief to the petitioner by striking down his appointment to the post of Officer on Special Duty, as mere violation of Rule 9, sub-rule (1) does not involve infringement of any fundamental right. We however, hope that the State Government will not drive the petitioner to take appropriate proceedings for obtaining the necessary relief.

85. The last two grounds of challenge may be taken up together for consideration. Though we have formulated the third ground of challenge as a distinct and separate ground, it is really in substance and effect merely an aspect of the second ground based on violation of Articles 14 and 16. Article 16 embodies the fundamental guarantee that there shall be equality of opportunity for all citizens in matters relating to employment or appointment to any office under the State. Though enacted as a distinct and independent fundamental right because of its great importance as a principle ensuring equality of opportunity in public employment which is so vital to the building up of the new classless egalitarian society envisaged in the Constitution, Article 16 is only an instance of the application of the concept of equality enshrined in Article 14. In other words, Article 14 is the genus while Article 16 is a species. Article 16 gives effect to the doctrine of equality in all matters relating to public employment. The basic principle which, therefore, informs both Articles 14 and 16 is equality and inhibition against discrimination. Now, what is the content and reach of this great equalising principle? It is a founding faith, to use the words of Bose. J., “a way of life”, and it must not be subjected to a narrow pedantic or lexicographic approach. We cannot countenance any attempt to truncate its all-embracing scope and meaning, for to do so would be to violate its activist magnitude. Equality is a dynamic concept with many aspects and dimensions and it cannot be “cribbed, cabined and confined” within traditional and doctrinaire limits. From a positivistic point of view, equality is antithetic to arbitrariness. In fact equality and arbitrariness are sworn enemies; one belongs to the rule of law in a republic while the other, to the whim and caprice of an absolute monarch. Where an act is arbitrary, it is implicit in it that it is unequal both according to political logic and constitutional law and is therefore violative of Article 14, and if it effects any matter relating to public employment, it is also violative of Article 16. Articles 14 and 16 strike at arbitrariness in State action and ensure fairness and equality of treatment.



They require that State action must be based on valid relevant principles applicable alike to all similarly situate and it must not be guided by any extraneous or irrelevant considerations because that would be denial of equality. Where the operative reason for State action, as distinguished from motive inducing from the antechamber of the mind, is not legitimate and relevant but is extraneous and outside the area of permissible considerations, it would amount to mala fide exercise of power and that is hit by Articles 14 and 16. Mala fide exercise of power and arbitrariness are different lethal radiations emanating from the same vice: in fact the latter comprehends the former. Both are inhibited by Articles 14 and 16."

20. Thus, in the present case, the applicants have not demonstrated hostile discrimination; no mala fides have been established; the grievance is essentially service-related and not constitutional in nature. The challenge under Articles 14 and 16 will succeed only if arbitrariness or hostile discrimination is clearly established, and not merely on the basis of adverse impact on career progression.

21. In the result, for the foregoing reasons, we do not find any merit in the present OAs and the same are accordingly dismissed.

22. There shall be no order as to costs.

23. Pending MAs, if any, shall stand disposed of accordingly.

24. Registry is directed to place a copy of this Order in another connected OA as well.

(Rajinder Kashyap)
Member (A)

(Justice Ranjit More)
Chairman

/ravi/